Who Controls, Who Answers? A Deployment Front Door for High-Impact AI Litigation

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Abstract

AI litigation can stop before substantive doctrine can operate. An affected person may observe an adverse decision or interaction while the operative system, event record, and allocation of control remain divided among enterprises. Discovery ordinarily presupposes an identifiable target and cannot produce a record that was never created.

This Article identifies that pre-merits attribution gap and proposes model sectoral legislation establishing a deployment front door. After a verified adverse event in a designated high-impact deployment affects an interest protected by specified law, the visible operator must identify the operative system and version, supply the event receipt and custodian map, and preserve the bounded record. The request never depends on facts available only inside that record. Broader production requires the cumulative material-control test developed below and remains claim specific, necessary, proportionate, and nonprivileged. Enterprises outside that lane exit the front-door role, and participation creates no merits inference.

Because discovery cannot recreate information never recorded, the proposal also requires deployment- and event-linked version, approval, evaluation, escalation, intervention, and retrieval records during operation. That ex ante duty and independent access right leave pleading and ordinary discovery in their existing roles; once federal litigation begins, the Federal Rules govern party discovery. Garcia v. Character Technologies *illustrates a missing record inside a visible service, while* Mobley v. Workday *illustrates identity and control divided across an employment stack. In both, information comes before liability: the proposal changes access and sequence, not duty, causation, defense, or remedy.*

Keywords: *artificial intelligence litigation; deployment front door; high-impact AI; early disclosure; deployment records; material control*

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Introduction

Fourteen-year-old Sewell Setzer III did not encounter a foundation model in a laboratory. He encountered a deployed relationship. In *Garcia v. Character Technologies, Inc.*, his mother's complaint alleged that Character.AI combined persistent personas, memory, access rules, warnings, engagement design, and safety controls in a consumer service available to minors. It alleged that Character Technologies' founders and Google made different contributions of personnel, technology, knowledge, and resources and that, after months of interaction with a character modeled on a fictional television figure, Sewell died by suicide. His mother brought wrongful-death, negligence, product-defect, failure-to-warn, deceptive-practice, and related claims. At the pleading stage, the district court treated the application as plausibly alleged to be a product and declined, on that record, to classify the generated output as protected speech. The action later settled without a finding of defect, causation, or liability.[1]

The case exposes a problem analytically independent of the ultimate merits result. The user sees the interface and the output. The facts ordinary law needs lie behind both: which model and application versions ran; who selected the relational objective, system instructions, memory, age gate, crisis response, and engagement metric; what evaluations, complaints, and incident signals arrived; who could update, restrict, roll back, or stop the deployment; and which enterprise retained each record. In a direct-to-consumer service, the operating company may be obvious while its deployment record remains inaccessible. In a divided system, the visible hospital, employer, agency, or application can depend on a model vendor, scoring service, infrastructure provider, and systems integrator that retain different controls. The claimant needs the configuration and control record to test a recognized claim, yet often must identify the record holder before obtaining that record. The merits standard exists; access to the facts that feed it does not.

This Article calls that sequence the *pre-merits attribution gap*. It comprises two related failures. The first is an *actor-identification failure*: an affected person cannot tell which enterprise selected or retained a control relevant to the asserted risk. The second is a *deployment-record fail-*

[1] See *Garcia v. Character Techs., Inc.,* 785 F. Supp. 3d 1157, 1165–69, 1174–84 (M.D. Fla. 2025); Order Dismissing Settled Action at 1, *Garcia v. Character Techs., Inc.,* No. 6:24-cv-01903-ACC-DCI (M.D. Fla. Jan. 7, 2026), ECF No. 244; Order Resolving Charging Lien at 1, *Garcia v. Character Techs., Inc.,* No. 6:24-cv-01903-ACC-DCI (M.D. Fla. June 11, 2026), ECF No. 273. The complaint's disputed account remains an allegation. This Article uses the published Rule 12 order for its classification and pleading analysis, not as a merits judgment.

ure: even when the operator's name is visible, the versions, configuration, evaluations, warnings, incidents, and intervention authority needed to test its conduct remain internal or were never recorded. Ordinary discovery supplies no backstop: Rule 34 reaches only materials within a party's possession, custody, or control and imposes no duty to create a record.[2] The first failure is most acute in divided deployments. The second can determine a case in any deployment.

Providers can compound that opacity through a rhetorical switch. Before injury, a system may be a companion that understands, remembers, plans, or acts; after injury, it becomes a probabilistic model whose precise output no employee selected. Both descriptions may matter to the merits. Neither should make the deployment record disappear. Anthropomorphic design can identify intended use and expected exposure, while stochastic operation makes a versioned event record especially important; neither creates an artificial defendant or erases organizational choices about deployment.

AI-liability scholarship disagrees over the rule that should govern once the relevant actor and conduct are known: strict liability, products liability, negligence, or a narrower statutory approach.[3] That disagreement reinforces the need for a logically prior access rule. Negligence, products liability, strict liability, and no-liability rules differ on the merits, but each needs enough information to identify the covered conduct, actor, and deployment.

The question presented is therefore narrow: when an adverse event affects an interest protected by specified law through a designated high-impact AI deployment, but the affected person cannot identify the operative system, control holder, or deployment record, what facts should open a bounded identity-and-event stage—and which enterprise must answer first?

In the title's terms, to "answer" is to provide the fixed first answer, not to bear liability by virtue of visibility or participation.

The Article's contribution is institutional sequencing. Ordinary federal discovery operates after a viable action reaches an identifiable target, while neighboring proposals generally begin with an identified actor, artifact, decision, or producing party. Section I.D maps that literature. The front door instead combines a sectoral designation, an ex ante minimum

[2] See Fed. R. Civ. P. 34(a)(1).

[3] See Anat Lior, *AI Strict Liability Vis-À-Vis AI Monopolization*, 22 COLUM. SCI. & TECH. L. REV. 90, 91, 94–97 (2021); Zachary Henderson, *Rethinking Robot Liability*, 67 B.C. L. REV. 479, 483, 515–17 (2026); Catherine M. Sharkey, *A Products Liability Framework for AI*, 25 COLUM. SCI. & TECH. L. REV. 240, 240, 244–47 (2024); Ketan Ramakrishnan, *Tort Law at the Frontier of Artificial Intelligence*, 43 YALE J. ON REG. 960, 960–61 (2026).

record, a visible operator, and a control-based filter that allocates access without allocating liability.[4]

Recent work makes the adjacent problem explicit. Stewart proposes pre-litigation testing of a known algorithmic decision; Cen, Ismael, and Zheng structure access disputes once a requester[5] can identify an artifact and a producing party that controls it.[6] The front door supplies the missing first step: it identifies the deployment and holders and ensures that a minimum record exists before counterfactual testing, ordinary discovery, or audit begins.

The primary adoption audience is a state legislature regulating a designated sector; Congress can use the same architecture where national uniformity is required. The legislature creates the record and access duties. If enforcement is needed, a court adjudicates the fixed access claim; broader production proceeds only by agreement or through a forum independently authorized to order it.

The proposed *deployment front-door rule* begins with a legislative designation of, among other elements, the protected interests, covered function, visible operator, minimum record, retention period, and material-change threshold. After a verified covered event, the operator supplies a fixed identity-and-event answer and activates its preservation and retrieval paths. The operator is selected because an affected person can find it, not because the statute presumes it controlled the risk. Broader production follows only along a claim-specific lane supported by that first answer. An enterprise outside the relevant lane exits the front-door role; every merits element and defense remains unchanged. The rule is an information-forcing device: it assigns the disclosure duty to the party that can cheaply supply the fact, so that an existing legal standard becomes operable.[7]

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[4] "Front door" carries no lawful-access or encryption sense here: the rule creates no access to system internals, no decryption obligation, and no law-enforcement channel. Cf. Harold Abelson et al., Keys Under Doormats: Mandating Insecurity by Requiring Government Access to All Data and Communications, 1 J. Cybersecurity 69 (2015).

[5] Three roles recur throughout and are kept distinct. The *affected person* holds the statutory status under the designation; the *requester* is the procedural actor who bears the burdens in the access proceeding; the *claimant* names a merits posture and is used only where an underlying cause of action is in view. The first term aligns with Regulation (EU) 2024/1689, art. 86, which grants the right to an explanation of individual decision-making to an "affected person."

[6] See Matthew Stewart, *Beyond Explanation: Evidentiary Rights for Algorithmic Accountability*, in Proceedings of the 2026 ACM Conference on Fairness, Accountability, and Transparency 1066, 1067, 1076–79 (2026), `https://doi.org/10.1145/3805689.3806532`; Sarah H. Cen, Hannah Ismael & Lucia Zheng, *Barriers to Evidence in AI-Related Cases and the Privatization of Proof*, in Proceedings of the 2026 ACM Conference on Fairness, Accountability, and Transparency 7793, 7794–95, 7801–05 (2026), `https://doi.org/10.1145/3805689.3812219`.

[7] See Ian Ayres & Robert Gertner, Filling Gaps in Incomplete Contracts, 99 Yale L.J. 87, 91, 97–100 (1989).

Because litigation cannot recover a record never created, the proposal also imposes an ex ante deployment-record duty. The record identifies versions, risk and approval authority, evaluations, unresolved risk decisions, material changes, complaints, incidents, interventions, custodians, and retrieval rights. A compressed *deployment-control cascade* specifies those fields by mapping objectives, resources, configuration, feedback, and stopping power across the deployment. The cascade adapts the hierarchical control structure of systems-theoretic accident analysis, retaining its controller, control-action, and feedback vocabulary while using it to specify evidence rather than to assess safety.[8] It is a record method, not a standard of care: token-level unpredictability may complicate causal proof, but it does not make organizational choices disappear.

The rule remains sectoral, event specific, proportionate, and protected. It supplies no general right to inspect AI and no remedy for a loss that governing law does not recognize. Jurisdiction, immunity, privilege, privacy, security, trade-secret protection, and substantive defenses remain operative; ordinary procedure resumes once the front door has supplied the predicates it presupposes.

Part I identifies the attribution gap and specifies the missing record. Part II states the two-stage rule, model statutory text, and federal-procedure boundary. Part III applies the mechanism to *Garcia*'s visible service and *Mobley*'s divided employment stack. Parts IV and V develop the record infrastructure and its legal boundaries. The Conclusion returns to one proposition: substantive law should decide AI cases, not an information asymmetry that prevents substantive law from starting.

[8] See NANCY G. LEVESON, ENGINEERING A SAFER WORLD: SYSTEMS THINKING APPLIED TO SAFETY 75–76, 87–90 (2012); Nancy G. Leveson & John P. Thomas, STPA Handbook, at 14–15 (MIT Partnership for Systems Approaches to Safety and Security, 2018), `https://psas.scripts.mit.edu/home/get_file.php?name=STPA_handbook.pdf`.

I. The Pre-Merits Attribution Gap

A merits rule and a fact-access rule perform different work. Negligence may ask what precautions a reasonable deployer would have taken; products law may ask whether a design or warning was defective; antidiscrimination law may ask whether a screening process caused a prohibited disparity; administrative law may ask whether an agency supplied the explanation and review an entitlement requires. Each inquiry presupposes a defined act, actor, system, and time. Affected persons commonly know the adverse result and the institution through which it arrived. They do not ordinarily know the version, configuration, allocation of control, or record needed to connect that result to the governing elements.

This Part separates three forms of opacity, maps the gap along actor-identity and record-availability coordinates, identifies the predicates ordinary procedure presupposes, distinguishes adjacent evidence rights, and uses the deployment-control cascade to specify the missing record.

A. The Output Does Not Reveal the Deployment

An AI dispute should begin with the deployed system rather than the generated token, score, or recommendation. The first attribution question is not who selected the final words or number. It is who constructed, supplied, authorized, observed, and could alter the deployment that produced the legally relevant effect. A model's internal computation may be difficult to explain while the surrounding control structure can leave usable evidence in contracts, release records, configuration systems, evaluation reports, incident queues, and access logs when law requires its creation and retention. That distinction makes responsibility evidence obtainable even when a compact explanation of the model's internal path is unavailable.

Three forms of opacity should remain separate. *Computational opacity* concerns the inability to give a human-scale account of how internal states produced a particular output. *System opacity* concerns interactions among the model, instructions, retrieval, memory, tools, filters, credentials, and conventional software. *Organizational opacity* concerns who approved the use, possessed risk information, controlled resources, or could restrict and stop operation. The first may follow from architecture. The latter two ordinarily follow from deployment design and recordkeeping.[9]

Collapsing all three into a single "black box"[10] allows the least tractable fact to obscure the facts ordinary doctrine can use. A court may be unable to reconstruct why a model ranked one token above another yet able to determine that a provider selected the model; a deployer supplied protected records and external tools; an interface suppressed uncertainty; a safety team documented a known failure mode; management rejected a delayed release; and an operator lacked time or authority to intervene. Intent and knowledge are often inferred from conduct and circumstances, product defect can sometimes be proved circumstantially, and direct organizational fault can lie in information systems, supervision, and resource allocation.[11] Model interpretability is not a condition precedent to responsibility at the deployment level.

Fragmentation makes those accessible facts difficult to attribute. Consider an employer that licenses an applicant platform. The employer may select the job, criteria, candidate pool, weight assigned to a recommendation, and final disposition. A platform vendor may select the ranking model, training process, default features, update cadence, and bias testing. A systems integrator may configure data fields and workflow triggers. The applicant encounters an employer-branded portal and a rejection, not this allocation. In *Mobley v. Workday, Inc.*, for example, a complaint alleged that employer customers delegated candidate screening to Workday's AI-based tools; at the Rule 12 stage, the district court treated the alleged delegation of a traditional hiring function as sufficient to proceed on a statutory agency theory while leaving the allegations and ultimate liability unresolved.[12] The opinion shows that substantive law may address a divided stack once the vendor and its alleged function are visible. It does not supply every rejected applicant with the identity, version, configuration, or evaluation record needed to reach that point.

The same problem appears when the visible institution itself cannot inspect the vendor's method. A public employer may control whether and how a score affects termination while a vendor controls the scor-

[9] Compare Jenna Burrell, How the Machine 'Thinks': Understanding Opacity in Machine Learning Algorithms, 3 Big Data & Soc'y 1 (2016), which classifies opacity by its source—intentional secrecy, technical illiteracy, and the mismatch between machine optimization and human semantic reasoning. The classification here uses a different axis: the locus of the missing fact. The two classifications are orthogonal.

[10] The criticized conflation is the black-box metaphor of Frank Pasquale, The Black Box Society: The Secret Algorithms That Control Money and Information (2015).

[11] See, e.g., *United States v. U.S. Gypsum Co.,* 438 U.S. 422, 444–46 (1978); *Speller v. Sears, Roebuck & Co.,* 100 N.Y.2d 38, 41–43 (2003); RESTATEMENT (THIRD) OF AGENCY §§ 7.03(1), 7.05 (Am. L. Inst. 2006).

[12] See *Mobley v. Workday, Inc.,* 740 F. Supp. 3d 796, 806–08 (N.D. Cal. 2024). The decision granted in part and denied in part Workday's motion to dismiss the first amended complaint; it did not find discriminatory operation or resolve the merits.

ing software and updates. A hospital may select the patient population and integrate a recommendation while a supplier controls model validation and releases. A benefits agency may own the legal decision and appeal path while contractors control the calculation tool and documentation. Control is distributed by function, not transferred wholesale to whichever entity's logo appears on the screen.

The front door follows legally answerable organizations; it does not construct an artificial defendant. Operational autonomy describes how a system produces effects, not an entity with assets, records, capacity for service, or exposure to judgment. The rule begins with a visible organization and follows records and risk-specific authority to enterprises law can reach. A future legislature may create a bounded juridical status, but that separate project is unnecessary to open the merits process.

B. Two Coordinates Define the Gap

Actor identity and record availability are independent coordinates. Treating them as one generic opacity problem obscures which legal intervention is needed. A claimant may know the relevant operator yet lack its deployment record. A claimant may possess a transaction or application record yet lack the upstream entity that supplied the operative function. A divided stack can produce both conditions at once. The front door sequences identity and record access so that each condition receives the smallest useful response.

The first configuration is an identifiable integrated operator with an adequate record. Ordinary procedure has a direct target, and the statute's principal work occurs ex ante: standardization, retention, and a quick first answer. The record may establish the active version, relevant policy, warnings, incident sequence, and stop authority without adding another merits defendant. If a filed claim proceeds, ordinary discovery can deepen the record in the familiar way.

The second configuration is an identifiable operator with a missing or fragmented internal record. The brand and legal entity are visible, but the claimant and sometimes the operator cannot reconstruct which versions, components, policies, and intervention roles governed the event. This is the deployment-record failure. It arises in an integrated consumer service when engineering, safety, product, trust-and-safety, and executive decisions live in separate systems. It also arises in a public institution that relies on a proprietary score it cannot independently verify. The ex ante duty matters most here because a post-event subpoena cannot create lineage or approval that the operator never recorded.

The third configuration is an identifiable event with an unknown operative entity. An applicant may have an employer, job, timestamp, and rejection while lacking the product feature that processed the application and the supplier responsible for it. A patient may know the hospital encounter while lacking the vendor and version embedded in a clinical workflow. This is the actor-identification failure. A closed first answer resolves provenance and custodian fields before broader access. The visible operator performs the gateway role because it chose to incorporate the system and can preserve the event even if another enterprise holds the relevant control lane.

The fourth configuration combines the two. The operative feature and supplier are hidden, and the minimum record was never created or is divided by contract. A supplier may host data while the customer owns it; an integrator may hold configuration history while the institution holds the decision; a model provider may know version lineage while the application company knows prompts, tools, and user exposure. Asking the claimant to choose a single controller before revealing this map converts organizational design into a litigation advantage. Treating every participant as a controller creates the opposite error. The front door identifies lanes first and terminates the special role of actors outside them.

The two coordinates yield the Article's sequence: map the event and deployment, preserve the bounded slice, identify the control lanes and record custodians, remove irrelevant actors, and expand access only along lanes relevant to an unresolved legal theory. That sequence opens the merits without deciding them.

C. Ordinary Procedure Opens After Four Predicates

Federal procedure supplies substantial tools after four predicates are present: a filed action, a complaint capable of stating a legal claim, a known party or subpoena recipient, and an existing record within the reach of that target. The deployment front door supplies information needed to establish those predicates; it does not replace the procedure that follows them.

Pleading law illustrates the sequence. Rule 8 requires a short and plain statement showing entitlement to relief. *Twombly* and *Iqbal* require factual matter supporting a plausible claim, while Rule 11(b)(3) requires counsel to certify that factual contentions have evidentiary support or, if specifically identified, will likely have such support after a reasonable opportunity for investigation or discovery.[13] That accommodation matters: a plaintiff need not possess every internal email or validation report before filing. But Rule 11 creates neither a discovery entitlement nor a substitute for Rule 8. Neither rule names an unknown sup-

[13] See Fed. R. Civ. P. 8(a)(2); Fed. R. Civ. P. 11(b)(3); *Bell Atl. Corp. v. Twombly,* 550 U.S. 544, 555–59, 570 (2007); *Ashcroft v. Iqbal,* 556 U.S. 662, 678–79, 686 (2009); *Rotella v. Wood,* 528 U.S. 549, 560–61 (2000).

plier, links a rejection to a product feature, identifies the version that ran, or requires the operator to have recorded that fact.

Discovery becomes powerful once an action and target exist. Rule 26(b)(1) permits discovery of relevant, proportional, nonprivileged matter. Rule 34 reaches existing documents and electronically stored information in a party's possession, custody, or control. Rule 45 reaches a known nonparty that can be named and served.[14] These mechanisms can test an agency theory, obtain validation evidence, and expose a divided contract. They do not identify the person to whom a subpoena should be directed.

Initial disclosure begins later and serves a narrower function. Rule 26(a)(1) generally requires the parties to identify witnesses and materials they may use to support their own claims or defenses, along with damages and insurance information. The disclosures ordinarily follow the Rule 26(f) conference.[15] They are not an adverse-record inventory. An operator that does not expect to use a rejected mitigation, contradictory test, or internal escalation in support of its position has no initial-disclosure obligation to list the item on that basis alone. The claimant can request it in discovery after the case begins; the pre-merits attribution gap is how to identify the system, holder, and record category needed to frame that request.

Court-authorized early discovery provides a real bridge when the claimant already has a unique event identifier and knows the intermediary holding the identity record. In *Strike 3 Holdings, LLC v. Doe*, a rights holder tied an alleged online infringement to an IP address and sought an early subpoena to the known internet service provider capable of mapping that address to a subscriber. The D.C. Circuit held that Rule 26(d)(1) permits such a route and that Doe pleading can be appropriate when discovery is expected to reveal identity, subject to relevance, proportionality, and a realistic prospect of jurisdiction and success.[16] The case identifies the bridge's predicates as clearly as its power: a viable substantive claim, a unique event identifier, and a known intermediary with an existing identity record. A fragmented deployment may lack the second or third predicate because the applicant sees only a branded portal, the operator does not retain the feature or event identifier, or the intermediary itself is hidden behind an integrator.

Rule 27 occupies another useful but bounded lane. It permits a person expecting to become a party to perpetuate testimony that risks be-

[14] See Fed. R. Civ. P. 26; Fed. R. Civ. P. 34(a)(1), 45.
[15] See Fed. R. Civ. P. 26(a)(1)(A)(i)–(iv), 26(a)(1)(C), 26(f).
[16] See *Strike 3 Holdings, LLC v. Doe,* 964 F.3d 1203, 1207, 1210–11 (D.C. Cir. 2020); see also *Columbia Ins. Co. v. Seescandy.com,* 185 F.R.D. 573, 577–80 (N.D. Cal. 1999).

ing lost before an action can be filed. The petition must state the facts the petitioner expects to establish and the substance of the testimony to be preserved. Courts therefore distinguish perpetuation of known evidence from an investigation designed to learn whether a cause of action exists or whom to sue. In *Workman v. United States Postal Service*, the Tenth Circuit affirmed denial of a petition that sought testimony to determine whether a postal-facility fire supported a claim; lack of the evidence needed to frame a complaint was not the inability to bring an action contemplated by Rule 27.[17]

Divided control creates a further limit within ordinary discovery. Rule 34 control is a legal and organizational inquiry, not a synonym for technical hosting. The Ninth Circuit has declined to treat cooperative affiliation as control when the responding entity lacked a legal right to obtain an affiliate's files on demand. The Eleventh Circuit, in a different statutory proceeding and factual record, found control where affiliated entities regularly shared responsive information and the recipient had the practical ability to obtain it.[18] Those outcomes properly depend on contract and practice. They also show why a visible operator should retain the minimum record locally and obtain a contractual right to retrieve defined provenance and event fields from a supplier. Otherwise the vendor may physically host the data while the customer legally controls it, leaving each able to identify the other as the proper source.

Doe pleading and later amendment preserve some claims but do not create a national limitations safety net. Rule 15(c)(1)(C) requires timely notice to the added party and knowledge that, but for a mistake concerning identity, the action would have been brought against it. *Krupski* treats the prospective defendant's knowledge as central and recognizes that confusion over the roles of related, known entities can constitute a mistake. Courts can distinguish that situation from complete ignorance of an upstream actor. In *Winzer*, the Fifth Circuit held that substituting named officers for Doe defendants after limitations expired did not correct a Rule 15 mistake. Rule 15(c)(1)(A) can incorporate a more forgiving state relation-back rule, but that route depends on the law governing limitations and the state's own conditions.[19] A deployment statute

[17] See Fed. R. Civ. P. 27; *Workman v. U.S. Postal Serv.,* 127 F.4th 237, 240–45 (10th Cir. 2025); *Ash v. Cort,* 512 F.2d 909, 912 (3d Cir. 1975).

[18] Compare *In re Citric Acid Litig.,* 191 F.3d 1090, 1107–08 (9th Cir. 1999), with *Sergeeva v. Tripleton Int'l Ltd.,* 834 F.3d 1194, 1200–02 (11th Cir. 2016). *Sergeeva* arose under 28 U.S.C. § 1782; it illustrates a practical-control approach rather than deciding ordinary domestic merits discovery.

[19] See Fed. R. Civ. P. 15(c); *Krupski v. Costa Crociere S.p.A.,* 560 U.S. 538, 547–57 (2010); *Winzer v. Kaufman Cnty.,* 916 F.3d 464, 470–71 (5th Cir. 2019); *Butler v. Nat'l Cmty. Renaissance,* 766 F.3d 1191, 1200–02 (9th Cir. 2014).

can address the timing problem directly for a claim it creates or expressly governs by tolling the applicable period while a verified notice is pending. Amendment and relation back in a later federal action remain governed by Rule 15.

Pre-suit evidence proceedings, state and civil-law alike, confirm that a narrow identity stage is administrable while revealing the absence of a uniform route. Illinois Rule 224 authorizes an independent verified action limited to identifying a potentially responsible person or entity and ordinarily ends the proceeding after identification. Texas Rule 202 permits a verified petition to investigate a potential claim when the likely benefit outweighs burden or when perpetuation may prevent a failure or delay of justice. New York authorizes disclosure to aid in bringing an action. California's perpetuation statute takes the opposite approach: it expressly excludes discovery to determine whether a claim exists or to identify parties.[20] Civil-law systems institutionalize a cognate device. France's *mesure d'instruction in futurum* permits a court to order investigative measures before trial when there is a legitimate reason to preserve or establish evidence on which the resolution of a dispute may depend.[21] Germany's *selbständiges Beweisverfahren* permits an independent evidentiary proceeding outside a pending action—with the opponent's consent or, for a written expert opinion, where the determination may avert litigation altogether.[22] These systems, domestic and civilian, supply design elements—verification, a closed purpose, burden review, a short proceeding, and cost allocation—rather than an existing uniform solution.

D. Existing Evidence Rights Need a Deployment Front Door

Evidence-access scholarship now reaches both sides of litigation's filing line. Stewart's counterfactual-interrogation right would let a person affected by a known adverse algorithmic decision generate behavioral evidence before filing suit. The organization would supply a bounded in-

[20] See Ill. Sup. Ct. R. 224(a)(1)–(2), (b), (c); Tex. R. Civ. P. 202.1, 202.2(g), 202.4(a), 202.5; N.Y. C.P.L.R. § 3102(c) (2026); Cal. Civ. Proc. Code § 2035.010(b) (2026). A New York pre-action petition does not become a federal Rule 27 proceeding simply because a respondent removes it; *Teamsters Local 404* treated the state petition as outside the removable civil action described by 28 U.S.C. § 1441. See *Teamsters Loc. 404 Health Servs. & Ins. Plan v. King Pharms., Inc.,* 906 F.3d 260, 264–69 (2d Cir. 2018).

[21] Code de procédure civile [C. pr. civ.] art. 145 (Fr.), as amended by Décret n° 2025-619 du 8 juillet 2025, art. 4 (version in force since Sept. 1, 2025) (measures available "sur requête ou en référé" where a legitimate reason exists to preserve or establish, before any trial, the proof of facts on which the resolution of a dispute may depend). The device is cited as institutional precedent for a bounded pre-action stage, not as an equivalent of the front door.

[22] Zivilprozessordnung [ZPO] §§ 485–494a (Ger.), especially § 485 (opponent's consent; legal interest presumed where a written expert opinion may avoid litigation) and § 494a (deadline to file suit after the proceeding); the device is cited with the same narrow characterization.

terface using the decision-time model version, supported by logging and retention duties.[23] This is the nearest pre-litigation intervention. It begins, however, with an identified adverse decision, an organization capable of furnishing the testing portal, and a model linked to the decision. The front door constructs the identity and routing predicates that a divided deployment may conceal: whether a covered feature participated, which product and version ran, which entities supplied and operated it, and who can retrieve the event record. The two stages follow the familiar form of phased discovery; Part II defines them operationally, Stage One as the fixed identity-and-event answer owed by the visible operator and Stage Two as bounded, claim-specific production on a prima facie showing. Once Stage One supplies that map, counterfactual interrogation can operate as one bounded form of Stage Two testing.

Cen, Ismael, and Zheng address the complementary access dispute. They identify seven recurring asymmetries—models, data, documentation, logs, expertise, compute, and infrastructure—and describe a Catch-22 in which the requester needs evidence to justify access while the producing party controls the evidence needed to make that showing. Their three-part test compares the benefits and risks of requested access, the minimum access needed to reproduce elements of the cause of action, and functionally equivalent alternatives.[24] That framework helps a court decide *how much* existing evidence an identified producing party should disclose. Stage One supplies the deployment and event fields, the custodian map, and the control lanes; Stage Two can then use ordinary proportionality, protective orders, access alternatives, and the Cen framework on a claim-specific record.

Other work specifies adjacent components without supplying this claimant-facing route. García-Llorente and Olmeda propose a minimum technical-evidence package for sufficient intelligibility and auditability; procurement scholarship treats the contract file as a governance record; and organizational research shows that accountability records can change

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[23] See Stewart, supra note 6, at 1067, 1075–79.

[24] See Cen, Ismael & Zheng, supra note 6, at 7794–95, 7801–05. Their analysis includes nonparty developers, preservation, procurement, and logging. The distinction here is institutional sequence: the front door imposes a visible-operator gateway, minimum deployment record, material-control routing rule, and safe exit before a court can apply an access test to a defined requester–producer relation.

the conduct they observe.[25] Those contributions inform what a useful record may contain and how its costs should be controlled. The front door supplies the legal sequence that makes the record reachable by an affected person without treating the procurement contract or technical package as the source of the entitlement.

A 2026 systematic study of 559 federal opinions likewise finds that courts principally use preexisting doctrines and that litigated harms reflect the injuries those doctrines recognize.[26] That evidence supports the Article's ordinary-law premise. The front door adds a positive-law routing and record-formation layer so existing doctrine can operate on a known deployment.

E. The Cascade Specifies the Missing Record

The deployment-control cascade is a disciplined way to define those predicates. Adapted from systems-safety analysis, it represents an AI deployment as linked controllers, control actions, process models, feedback channels, and intervention capacity. Systems-theoretic methods treat loss as a control problem that can arise from an absent constraint, unsafe action, inadequate feedback, or a controller's mistaken model of the operating environment.[27] The cascade uses that vocabulary only to specify contestable evidence. Governing law assigns duty, fault, causation, defenses, and remedy.

Four functional levels provide a reusable map for the integrated and divided deployments addressed here:

1. *authority and resources*: the actors who set objectives, risk tolerance, staffing, compute, data access, and release conditions;

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[25] See Carlos García-Llorente & Ignacio Olmeda, *Making Algorithmic Transparency Enforceable: Sufficient Intelligibility, Technical Evidence, and Auditability Across the EU and the US*, 34 Int'l J.L. & Info. Tech. eaag008 (2026) (abstract) (proposing a minimum technical-evidence package); Oswaldo Maxwell, The Procurement Record: How AI Contracts Decouple Evidence, Risk, Control, and Accountability (unpublished manuscript, July 10, 2026), `https://ssrn.com/abstract=7097518` (abstract) (treating the procurement file as a governance record); Shreya Chappidi et al., *Accountability Capture: How Record-Keeping to Support AI Transparency and Accountability (Re)shapes Algorithmic Oversight*, 8 Proceedings of the AAAI/ACM Conference on AI, Ethics, and Society 554, 558–63 (2025) (identifying behavioral effects of accountability records).

[26] See Julie Yu et al., Visible to the Court: How AI Is (and Isn't) Litigated in U.S. Federal Court Opinions, at 1–2, 8–9 (2026), `https://arxiv.org/abs/2607.23888`. The study codes federal opinions in which AI appears in the parties' contentions; it does not estimate the universe of AI incidents or adjudicate the validity of any claim.

[27] See Leveson, supra note 8, at 75–76, 87–90 (developing the systems-theoretic premise); Leveson & Thomas, supra note 8, at 14–15 (specifying the STPA method); Shalaleh Rismani et al., *From Plane Crashes to Algorithmic Harm: Applicability of Safety Engineering Frameworks for Responsible ML*, in CHI '23 Proc. 2:1–2:18, 2:5–2:6, 2:14–2:18 (2023), `https://doi.org/10.1145/3544548.3581407` (applying safety-engineering frameworks to responsible machine learning).

2. *model and component supply*: the actors who develop or select models, document limits, conduct evaluations, issue updates, and supply interfaces or weights;

3. *deployment and harness operation*: the actors who select instructions, retrieval, memory, filters, routing, tools, credentials, eligible users, monitoring, and escalation; and

4. *the affected environment*: operators, users, data subjects, third-party systems, and institutional conditions that supply inputs and experience effects.

These are roles rather than four firms. One enterprise can occupy the first three levels in an integrated service. An API deployment may divide them among a model vendor, application developer, enterprise customer, and professional user. A public agency can set the legal objective and use of a score while a contractor supplies and updates the model. The map prevents a corporate label or contract caption from substituting for actual function.

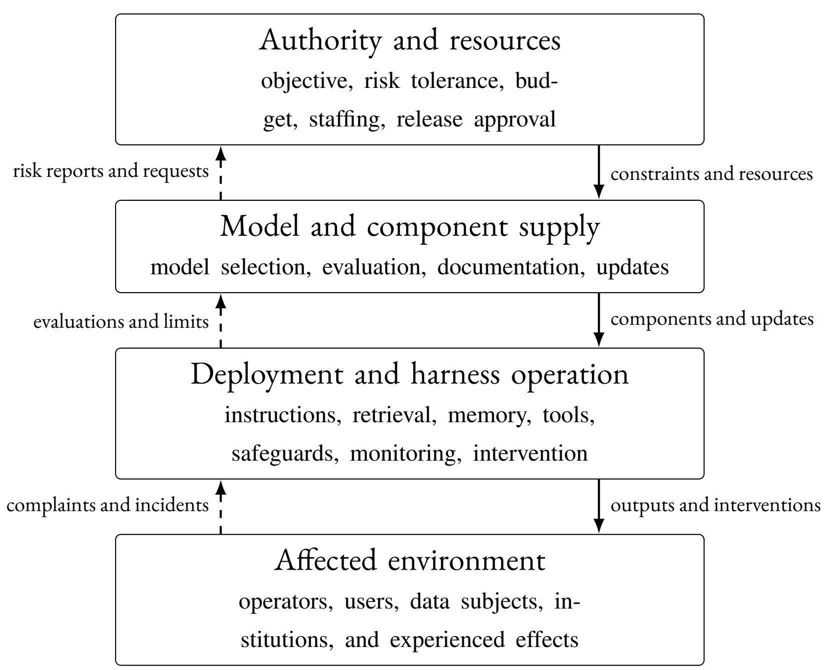

Figure 1: The deployment-control cascade as a record specification. Solid arrows carry authority, resources, components, and operational actions toward the affected environment. Dashed arrows carry the feedback required to update each controller's understanding. Restriction, rollback, credential revocation, and shutdown must be recorded where they can be exercised.

At each level, six questions specify the record. What asserted risk was within scope? Which action could create, expose, detect, or reduce it? What did the controller understand about the system and environment? Which feedback could correct that understanding? What practical authority and resources existed at the relevant time? Who could restrict, roll back, suspend, or terminate operation? Part IV translates those questions into a minimum control sheet. The answers are factual: governing law decides whether an approval, alert, credential, intervention, or omission establishes any merits element, and the same record may rebut the claim.

This mapping yields the front door's object. Actor-identification asks which enterprise occupied a risk-specific control lane. Deployment-record production asks for the bounded materials that establish or rebut that proposition and then permit ordinary doctrine to operate. Part II turns those two functions into a statutory trigger, a first-answer duty, and a safe exit.

II. The Deployment Front-Door Rule

The attribution gap calls for a limited information rule rather than a new general law of AI liability. The rule must tell an affected person whom to approach, tell enterprises what record to maintain, and tell courts when and how that record becomes available. It must also provide a safe exit for an enterprise whose connection to the brand or technical stack did not include practical control over the asserted risk.

This Part defines sectoral coverage, the visible-operator gateway, material control,[28] staged access, protection, remedies, and safe exit. It then supplies model statutory text and fixes the boundary between the ex ante state-law duty and federal party discovery.

A. Sectoral Designation Defines the Field

"High-impact" should identify a deployment category, not attach permanently to a model. A general-purpose model can support casual drafting in one setting and become part of a benefits, hiring, clinical, or physical-control process in another. The deployment supplies the protected interest, affected population, operating institution, and legally relevant control. Coverage should follow those features. The term is therefore high-impact rather than high-risk: coverage follows the deployment, not the

[28] "Material control" allocates information duties under the Act; it neither states nor borrows the "possession, custody, or control" standard of Rule 34. Model Act § 2's retrieval right is what interacts with Rule 34, and a federal court decides possession, custody, or control independently. See Fed. R. Civ. P. 34(a)(1); *Citric Acid*, 191 F.3d at 1107–08 (legal-right test); *Sergeeva*, 834 F.3d at 1200–02 (practical-ability approach).

model. The choice carries precedent rather than novelty—Canada's Artificial Intelligence and Data Act used "high-impact system" in the same deployment-attached sense.[29]

The proposed statute therefore applies only when a legislature has specified, among other elements, the protected interests, visible operator, minimum record, retention period, material-change threshold, and enforcement route. It may designate a category directly or authorize a sectoral agency to maintain a bounded list under express statutory criteria; the legislature retains the choices that determine who must answer and which interests justify compulsory recordkeeping.

Five features identify the strongest candidates. First, the deployment affects an interest already protected by substantive law, such as employment opportunity, access to public benefits, health, credit, housing, education, physical safety, or the welfare of minors. Second, the system repeatedly mediates decisions or exposure rather than producing an isolated low-consequence convenience. Third, affected persons predictably observe less about the operative system than the operator and suppliers know. Fourth, the identity, version, control, and event fields can be standardized at reasonable cost. Fifth, existing doctrine can adjudicate the dispute once those facts are available. These criteria select the settings in which a record gateway unlocks an established legal regime rather than inventing a new one.

One design choice this Part does not make is the choice of enactment level. The architecture fixes two different variables: *when* the record is created—ex ante, during covered operation, rather than ex post by reconstruction—and *for whom* it is created—for the affected person, rather than for a regulator alone. A national legislature can adopt the same architecture without changing a word of its substance, and a sub-national one can enact a regime that is purely regulator-facing; the Introduction, Part II.G, and Part V.C each assume as much in passing. Centralization and decentralization answer neither question.

Designation also fixes the public-law interface. If a visible operator is a government institution, the legislature should specify the enforcing tribunal, available relief, applicable exhaustion route, and the treatment of sovereign or official immunity. The front door need not imply a damages action against the government. It can supply an administrative record, declaratory remedy, reviewable denial, or other access path tailored to the

[29] See Bill C-27, Artificial Intelligence and Data Act ("high-impact system") (Can.) (died on prorogation, 2025). For the high-risk vocabulary this Article declines, see Artificial Intelligence Act, Regulation (EU) 2024/1689 (2024) ("high-risk AI system"); Colo. SB 24-205 ("high-risk artificial intelligence system"), repealed and replaced by SB 26-189 (eff. Jan. 1, 2027) (recast as "automated decision-making technology").

underlying interest. Defining that route at designation keeps the information right aligned with the sector's remedial structure.

This design avoids an unstable universal definition. Employment screening, allocation of essential public benefits, clinical diagnosis or treatment, credit, housing, education admissions, physical safety, and relational services offered to minors may justify different records and retention periods. A companion service may require age-access, relational-behavior, crisis-intervention, and continuity records. An employment tool may require input-feature, validation, selection-rate, configuration, and version records. A clinical system may require intended-use, validation-population, uncertainty, escalation, override, and follow-up records. The shared front-door architecture permits sector-specific content.

California's enacted companion-chatbot provisions demonstrate the feasibility of this form. The legislature defined a covered relational service and its operator, required specified disclosures and self-harm protocols, imposed protections for known minors and reporting obligations, supplied a private remedy, and preserved cumulative law.[30] The statute did not need to declare every conversational model high-impact. It regulated a deployment category and the enterprise that made it available.

A designation should also identify exclusions. Research or internal evaluation that does not produce a legally or practically consequential effect on an affected person ordinarily falls outside. So does general cloud hosting without risk-specific configuration or intervention authority. Small entities may receive simplified record forms or regulator assistance where the sector permits, but the information essential to identify a consequential decision should not disappear with enterprise size. A visible operator using open weights still controls a deployment; an upstream author who has no continuing authority may fall outside the post-release control lane.

B. The Visible Operator Answers First

The rule resolves the service problem by selecting the entity an affected person can ordinarily identify. The *visible operator* is the enterprise or public institution that made the covered deployment available to the affected person or incorporated it into the process that produced the adverse event (its *gateway role*). The term is not the emerging statutory "deployer": a deployer is selected by its role in deployment, while the visible operator is selected by its visibility to the affected person—the prop-

[30] See Companion Chatbots, Cal. Bus. & Prof. Code §§ 22601(b), (e), 22602(a)–(c), 22603(a)–(d), 22604–22606 (2025). The enacted provisions do not contain the deployment front-door rule proposed here; they demonstrate that a legislature can designate a relational deployment, identify its operator, and attach enforceable protocol and reporting duties.

erty that makes it a gateway the affected person can find.[31] It may be a companion-service provider, employer, hospital, lender, benefits agency, school, or operator of a branded application. Its gateway role follows from visibility and provenance, not a presumption that it controlled every risk.

Stage One uses an occurrence threshold rather than a miniature merits pleading. A verified notice identifies: (1) an adverse event affecting an interest protected by the law specified in the sectoral designation; (2) the covered deployment or visible operator through which the event occurred; (3) facts reasonably connecting the requested identity and event fields to that occurrence; (4) the relevant time, transaction, account, decision, or interaction with as much specificity as reasonably available; (5) the closed fields sought; and (6) a good-faith intended use of the answer to evaluate, contest, appeal, or seek relief for the event. A declaration under penalty of perjury supplies the requester's personal knowledge and marks matters stated on information reasonably available; counsel certifies proper purpose and reasonable inquiry.

That threshold demands an event and a bounded connection, but never a fact held exclusively in the deployment record. An applicant need not know whether a named feature was enabled, whether it generated a score, whether the score reached the employer, which version ran, or which supplier retained the event log. Those are first-answer fields. "An AI harmed me" remains insufficient because it identifies neither a covered adverse event nor a closed record. But the operator cannot defeat Stage One by demanding proof that an undisclosed feature participated in the event.

The notice invokes a statutory access right that exists outside merits discovery and may be served before a complaint. A designation may also permit delivery in another lawful forum; Model Act § 7 supplies the separate boundary after a federal action concerning the event is pending. Delivery follows the channel named in the designation, invokes the first-answer duty, and is not service of process for a later action. The operator receives thirty days, subject to one short documented extension, to answer, object by field, or state that no covered deployment processed the event. Silence, a blanket proprietary designation, and referral to an unnamed vendor are not responses.

If the operator refuses or materially underanswers, the affected person may seek narrow enforcement against that known entity in a lawful

[31] For the deployer vocabulary, see EU AI Act, Regulation (EU) 2024/1689 (art. 3(4)); Colo. Rev. Stat. tit. 6, art. 1, pt. 17 (SB 24-205) ("deployer"), repealed and replaced by SB 26-189 (signed May 14, 2026, eff. Jan. 1, 2027), which retains the developer/deployer distinction.

forum. The statutory violation is complete upon coverage, a compliant request, delivery, and nonperformance; enforcement does not depend on pleading the merits fact that the first answer exists to reveal. The administering agency or a court with independent subject-matter and personal jurisdiction can order the defined answer, and a valid arbitration agreement may select the private enforcement forum. The requester bears the burden on coverage, delivery, and the occurrence threshold. The operator bears the burden on a field-specific objection based on facts within its control, including nonoperation, burden, privilege, privacy, security, or documented unavailability. Jurisdiction, immunity, preemption, and a pure legal bar remain available before access expands beyond the fixed first answer.

The gateway then supplies a *first answer* with two components. The *event receipt* identifies the application and model versions active for the event; any output, score, decision, notice, warning, transmission, use, or intervention recorded for that event; and whether a requested function did not run. The *custodian map* identifies entities that supplied, configured, integrated, or operated material components; the holder and legal controller of each listed record; and the roles with authority to update, restrict, roll back, suspend, or stop a relevant function. The operator preserves records within its control, identifies the retention schedule and known deletion, and activates each contractual retrieval and preservation path required before deployment.

This answer gives the affected person identity and provenance without requiring reconstruction of vendor architecture. The operator forwards the notice and common event identifier to covered control holders so they can preserve and acknowledge their lanes. Local provenance and a retrieval right remain conditions of covered deployment even when a supplier relationship is confidential. Forwarding creates neither statutory coverage, choice of law, personal jurisdiction, nor service of process; direct duties attach only within the Act's valid reach, and other suppliers respond through the operator's contract or another independent source of law.

Stage Two begins only after that record exists and only by agreement or in a proceeding with an independent basis to order production. It is not a freestanding bill of discovery. The affected person must identify a claim-specific lane and proportionate information tied to the event and a merits issue; the next Section determines which covered control holder, if any, remains.

C. Risk Specificity, Practical Authority, and Information Materiality

"Ability to affect the system" is too broad. A cloud provider, investor, data vendor, researcher, model author, and downstream institution may each have some causal connection to a deployment. Beyond Stage One, the rule should retain a covered control holder only when three requirements are satisfied at the relevant time. Each requirement is assessed for a risk-specific control allocation (a *control lane*): an allocation of control over one function within a deployment, keyed to the asserted risk.

First, *risk specificity*: the asserted control must connect to the risk alleged in the verified notice. General influence over corporate strategy, compute availability, or model research does not establish control over age access, hiring rank, clinical escalation, a particular tool permission, or another specified hazard.

Second, *practical authority*: the enterprise must have possessed an operational or legally enforceable ability to configure, constrain, evaluate, monitor, update, suspend, roll back, or terminate the relevant function. A theoretical technical capacity, an expired contract right, or influence that required another actor's voluntary cooperation is evidence but not practical authority by itself. Contractual audit, update, safety-override, and suspension rights matter because they may be usable controls; a contractual label declaring the parties independent does not decide the question. The inquiry concerns authority over the deployment, not the practical ability to obtain documents that some courts treat as Rule 34 control.[32]

Third, *information materiality*: the Stage One record must support that the function formed part of the event path or governed a safeguard, and the requested information must bear more than a de minimis relation to an element, defense, or remedy. An incidental contribution or a remote ability affecting every customer in the same undifferentiated way falls outside. The inquiry asks whether the requested information can materially inform adjudication. It does not require a showing that exercising the authority would have prevented the injury, changed the ultimate decision, or satisfied causation.

The requirements are cumulative. Nonexclusive factors include who selected the deployment's purpose and population; chose the model and version; configured instructions, memory, retrieval, data fields, tools, and credentials; set engagement, ranking, decision, or escalation thresholds; received evaluations, complaints, and incident signals; could issue an up-

[32] Compare *Sergeeva*, 834 F.3d at 1200–02 (practical ability in a proceeding under 28 U.S.C. § 1782).

date or impose a restriction; retained contractual audit or safety-override rights; and could suspend, roll back, or terminate the function. The inquiry is temporal. Authority obtained after the event does not create earlier control, although later records may reveal what authority existed.

Several negative rules keep the test bounded. Investment, ordinary cloud capacity, publication of research, past employment, trademark association, and model provenance alone do not establish material control. Publishing open weights may end the original provider's ability to monitor or stop an independent deployment. A downstream modifier that removes safeguards, adds credentials, or selects a new high-impact purpose can occupy the relevant lane instead. Conversely, a provider that retains mandatory updates, remote suspension, risk monitoring, or binding deployment conditions may retain a lane despite contract language assigning "all responsibility" downstream; Part II.E examines the evasion strategies built on that rule.

Material control determines information obligations, not substantive liability. An enterprise can possess a control relevant to feasibility yet owe no duty under governing law, or receive an alert that does not constitute legal notice. The *merits firewall* therefore bars an inference based solely on coverage, notice, compliance, noncompliance, or participation. That allocation is familiar rather than novel: evidence of compliance or of a later precaution routinely carries no inference that the underlying conduct was deficient.[33] Independently relevant operational conduct retains only the effect governing law gives it.

i. Adjudicating Material Control

The test becomes useful doctrine when each requirement has an evidentiary question and an allocated burden. After the first answer, the affected person makes a prima facie showing by identifying a concrete lane connected to the asserted risk, showing that the Stage One record supports that the function formed part of the event path or governed a safeguard, and identifying requested information that bears more than a de minimis relation to a claim-specific element, defense, or remedy. The showing may point to an employer's enabled ranking feature, a provider's retained update authority, an application's self-harm threshold, or an integrator's workflow trigger. It concerns allocation and record relevance, not breach or causal sufficiency. An enterprise seeking termination then identifies Stage One material showing that the function did not run, no output was generated or transmitted, the asserted authority was unavailable at the relevant time, or the requested information bears at most a

[33] See Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 16 (Am. L. Inst. 2010); Fed. R. Evid. 407.

de minimis relation to an element, defense, or remedy. The tribunal decides termination on that closed record or permits a bounded Stage Two inquiry when a genuine factual conflict remains.

The record duty supplies one limited burden consequence. If a covered control holder's failure to create or retain a required Stage One field produces an ambiguity about its lane, the tribunal resolves that ambiguity against the record-duty holder only for access and termination. The consequence opens bounded production; it creates no inference of duty, breach, causation, discriminatory operation, or damages. That allocation prevents record noncompliance from becoming a safe exit while preserving the merits firewall. Table 1 summarizes this allocation of evidence and burden for each requirement.

Table 1: Material Control as an Adjudicable Test

Requirement	Evidence that supports the lane	Evidence that supports termination of the lane
Risk specificity	Function map; risk ownership; feature requirements; evaluation scope; incident category; warnings; escalation assignment.	General corporate influence; unrelated research; infrastructure service without risk-specific configuration; records addressing a different feature or hazard.
Practical authority	Contract right; administrative permission; release or update role; audit access; monitoring feed; restriction, rollback, suspension, or termination mechanism; consistent exercise in practice.	Expired or legally unavailable right; access requiring another actor's uncommitted consent; technical ability prohibited and unused; independent modification beyond visibility or reach.
Information materiality	Stage One evidence that the function formed part of the event path or governed a safeguard; requested information bearing more than a de minimis relation to an element, defense, or remedy.	Feature inactive for the event; output never generated or transmitted; lane acquired after the event; requested information unrelated to the asserted path or claim-specific issue.

Reserved rights count when they were legally available and operationally usable, not merely written on paper. A right to obtain validation, require an update, audit use, or suspend a feature may qualify even if unused; a generic right to terminate an entire agreement may be too remote. Conversely, actual practice may reveal authority that a contract label obscures; Part II.E develops the point against the strategic uses of slicing and relabeling. The applications in Part III test those distinctions across integrated and divided deployments.

A material-control ruling terminates only the special front-door role. An entity never named on an underlying claim returns to ordinary non-party status after completing any first-answer duty. A party already facing an independently sufficient cause of action remains subject to that claim even if it lacks the control lane alleged in the notice. This distinction gives safe exit its intended economy without using an information proceeding to decide a merits question it was not designed to reach.

D. Creation, Preservation, and Production Are Separate Duties

The front door depends on three legal functions that begin at different times.

i. Record Creation Before Operation

The *deployment-record duty* arises before a covered deployment affects the public. The visible operator has a nondelegable local duty to identify the system, version, purpose, population, material components, vendors, data sources, tools, credentials, intended limits, risk owners, release approval, event identifier, and intervention authority. "Nondelegable" here governs only compliance with the Act's record, retrieval, and access duties; it creates no underlying duty of care, vicarious liability, or primary-recourse rule. During operation, the operator records material changes, evaluations, complaints, incidents, escalations, overrides, restrictions, rollbacks, and termination decisions. A covered control holder maintains the subset corresponding to its lane. A supplier outside the Act's direct reach responds through the predeployment contract or another independent source of law.

A divided deployment requires a retrieval architecture as well as a list of vendors. Before use, the visible operator must obtain contractual rights to retrieve the identity, version, configuration, event, and control-allocation fields assigned to an upstream holder on demand. The agreement identifies a responsive agent, stable deployment and event identifiers, preservation and response duties, lawful routes for producing customer-controlled data, successor obligations after acquisition, and the treatment of subcontractors. The operator need not warehouse a supplier's source code or unrelated customer data. It keeps a closed deployment record, maintained locally, sufficient to identify what ran and a legally usable path to obtain the defined supplier fields.

That requirement builds a usable retrieval right into deployment design. Where Rule 34 control turns on a legal right to obtain documents on demand, a visible operator can create that right before deployment instead of litigating it after harm. Where privacy law or a customer agreement places legal control with the operating institution, the contract can authorize a coordinated response rather than allowing the host and customer to direct the requester to each other. Operator notice alone does not create personal jurisdiction over a foreign or out-of-state supplier.[34] A domestic operator preserves the minimum record locally and conditions covered use on a reachable agent and retrieval duty.

The designation supplies the detail. A statute need not require indefinite retention of every prompt or every user's data. It should define event categories, sampling where appropriate, privacy minimization, and a retention period calibrated to the protected interest and ordinary limitations period. High-impact decisions affecting employment or benefits may require the inputs, output, version, governing policy, notice, and review event for each affected person while permitting aggregation or deletion of unrelated interaction content. Relational deployments involving minors may require crisis detections and interventions while minimizing intimate content unrelated to the asserted event.

ii. Preservation After a Defined Trigger

Retention and litigation preservation are related but distinct. The statute fixes a baseline period before any dispute. A verified notice, regulator demand, filed claim, or other event making a dispute reasonably foreseeable suspends ordinary deletion for the risk-specific record. The operator must issue a hold to relevant custodians and notify identified control holders. The notice should not freeze every model and customer record. Its scope follows the event, versions, period, user or decision, control lanes, and asserted risk.

This statutory trigger creates a stable bridge to existing preservation law. It also protects defendants: a dated notice and documented hold define what had to be preserved and when. The record can show that a missing item was outside scope, deleted before any duty attached, or available from another source.

iii. Staged Production After the Threshold

Production proceeds in stages. Stage One is the first answer described above: identity and active versions; event-specific run, output, notice, and intervention fields; suppliers, custodians, and legal controllers; listed

[34] See *Bristol-Myers Squibb Co. v. Superior Ct. of Cal.*, 582 U.S. 255, 264–68 (2017); *Ford Motor Co. v. Mont. Eighth Jud. Dist. Ct.*, 592 U.S. 351, 359–71 (2021). The model statute therefore distinguishes a control holder directly subject to the Act from a supplier reached through the operator's contract and locally maintained deployment record.

operational and stopping authority; and preservation, deletion, and retrieval status. Its purpose is to identify the deployment and test the control lanes.

Stage Two is not an independent production action. By agreement or in a pending proceeding with authority over the record, it follows only when the affected person uses Stage One to make a prima facie showing of a claim-specific control lane, information materiality, and proportional need. It can include evaluations and validation; incident trends; configuration history; approvals; rejected or conditional mitigations; escalation and response; and records needed to test an alternative or defense. Time, version, population, feature, and risk bound the request.

Source code, model weights, unrestricted training data, security-sensitive controls, and unrelated users' content occupy a final tier. A court should order them only when the requesting party shows that a material issue cannot reasonably be tested through less intrusive evidence such as versioned documentation, validation results, representative testing, counterfactual interrogation, interrogatories, an expert protocol, or in camera review.[35] The distinction protects legitimate secrecy without converting a trade secret into a barrier to the legal process that governs its consequential use.

E. Protection, Remedies, and Safe Exit

Confidentiality is part of both stages. Every disclosure remains limited to nonprivileged matter and may use redaction, pseudonymization, data minimization, limited access, secure expert review, in camera review, and protective orders.[36] A protected record must still be identified by custodian, date, version, and asserted basis for withholding; a privilege log separates lawful protection from an unreviewable proprietary claim.

The statute should specify graduated consequences.

1. *Late or incomplete identification*: an order enforcing the statutory first answer and reasonable expenses caused by noncompliance. For a claim created or governed by the same enactment, the limitations period is suspended from service of a compliant request until a fixed period after compliance or final denial. Other state and federal claims retain their own limitations and tolling law.

2. *Failure to create or retain the minimum record*: the administrative penalty, corrective record order, compliance monitoring, or statutory-

[35] See Stewart, supra note 6, at 1076–79. Counterfactual interrogation tests the behavior of a known decision-time version; Stage One supplies the identity and preservation predicates needed to direct that tool.

[36] See Fed. R. Civ. P. 26(c)(1)(G).

access remedy specified by the sectoral enactment. The consequence addresses the independent deployment obligation; it does not become a prescribed inference on the underlying injury.

3. *Loss after a preservation trigger*: an order to identify the loss and available substitute sources, followed by measures under the governing forum's preservation law. For electronically stored information that should have been preserved in anticipation or conduct of federal litigation and cannot be restored or replaced, Rule 37(e) supplies the federal standard. The state statute should not prescribe a competing litigation sanction for the same loss.

4. *Intentional concealment or falsification*: specified civil penalties, enforcement expenses, and remedies for the independent access violation. Litigation misconduct remains subject to the tribunal's governing authority.

The reciprocal limit is *safe exit*. After Stage One, an enterprise may move to terminate its front-door role by showing that it lacked material control over the asserted risk during the relevant period. The claimant may use the first-answer record to contest that showing. Safe exit terminates the front-door role and nothing more: it is not a safe harbor and confers no immunity from any underlying claim. An entity not otherwise sued returns to ordinary nonparty status. A party remains only when an independently sufficient claim, a valid subpoena, or regulatory authority supplies a basis for continued participation. The gateway obligation therefore ends at the point where the control record shows that another lane or no control lane is relevant.

i. Adversarial Compliance

A record duty invites a second-order objection: once the duty binds, an enterprise will optimize against it. The worry is real but miscast. Goodhart's law operates on proxies—name a performance target and the target is optimized while the goal is abandoned. The front door names no performance. It names which facts about choices already made must be written down: which version ran, who could stop it, who holds the record. Those are not scores; they are descriptions of organizational structure, and the only way to move a description is to move the thing described. The Act specifies a description, not a measure. The first-order evasion the Act closes is informational: after designation, no operator can answer that the system is unexplainable or that the data does not exist. Three second-order moves remain. Each either fails on the Act's own terms or succeeds at the price of substantive-law exposure.

The first move slices practical authority: distribute update, suspension, monitoring, and audit rights across the stack in slices too thin for Model Act § 5(b), and disclaim the remainder by contract. Slicing cannot reach Stage One, which runs on visibility—the gateway role "follows from visibility and provenance, not a presumption that it controlled every risk"—and can attack only Stage Two. There it is self-defeating: Model Act § 4's custodian map must list every entity with update, restriction, rollback, suspension, or termination authority, so finer slicing yields a longer map. Nor do contract labels decide the question: Part II.C treats retained mandatory updates, cross-tenant disabling, and monitoring as evidence of a lane kept despite contract language assigning all responsibility downstream. Because the test is functional, the slice must be real, and an enterprise that genuinely cannot update, constrain, or suspend a deployed high-impact system has surrendered a capability it wants on commercial and safety grounds. The cost of the evasion is the capability itself, and the exposure lands on the visible operator, which cannot slice and which Model Act § 2 already obliges to secure retrieval rights before deployment.

The second move floods: answer completely, unusably, and at volume. It fails on the Act's terms. Stage One is a form, not a production: Model Act § 4 asks for an event receipt and a custodian map, kept in the designation's own field definitions through the closed control sheet of Part IV.B, and a version identifier buried in volume has not been identified. Silence, a blanket proprietary designation, and referral to an unnamed vendor are already nonresponses, as is material underanswering; Model Act § 6 runs objections field by field on facts within the objector's control, and every uncontested field remains due. Over-naming buys nothing either: Model Act § 5's negative rules exclude investment, general cloud service, research, brand association, and theoretical capacity, so surplus entities exit through safe exit at the operator's expense. The structural answer sits earlier still: the designation fixes the Stage One universe before the event, so volume cannot be tuned to the claimant.

The third move architects away the ability to intervene, then claims safe exit. This one works, and it is meant to: Table 1 recognizes exactly the showing of a technical ability prohibited and unused. But the exit is not free of record. Model Act § 2 and Table 3's intervention row require the deployment record to identify who may restrict, revoke credentials, update, pause, roll back, or terminate—with triggers, response times, and tested procedures—and if the answer is that no one may, that fact is recorded, dated, and attributable before any injury occurs, while the evaluation row separately requires rejected mitigations and unresolved risk decisions to be logged as what they are. The merits firewall bars inference from the Act's own categories; it preserves everything else, and independently relevant operational conduct retains the effect governing law gives it. Deploying a high-impact system into an employment, clinical, or benefits process that no one can stop is operational conduct, not a compliance fact. The cheapest route to front-door compliance is retaining real control, and retaining real control is also the best merits defense, as Part IV.F develops.

F. Model Statutory Text

The following text consolidates the rule as a default model. A sectoral enactment would identify the covered field, retention clock, administering authority, and ordinary civil-penalty ceiling while preserving the sequence and merits firewall.

> **Section 1. Designated Deployment and Covered Control Holders.** This Act applies only to an AI deployment category designated by the enacting legislature or by a sectoral agency acting under express and bounded statutory criteria. The designation shall identify the covered function, protected interests, visible operator, affected persons, minimum record, retention period, material-change threshold, administering authority, enforcement route, the form of the first answer, and civil-penalty ceiling. A *covered control holder* is a public or private organization to which this State's law validly applies that operates, provides, or continuously supports the identified covered deployment, or that has contractually assumed the response duties defined here. Before designation, the legislature or authorized agency shall publish a federal-overlap determination identifying applicable federal actors, statutes, regulations, exclusive enforcement provisions, express or conflict-preemption issues, excluded actors and fields, the relation between remedies, and the claims to which state tolling may lawfully apply.
>
> **Section 2. Deployment Record and Retrieval Architecture.** Before making a covered deployment available or incorporating it into an affected process, the visible operator shall create and maintain a deployment record, maintained locally, identifying the system and versions; purpose and affected population; material model, data, retrieval, tool, and credential components; deployment and event identifiers; suppliers and integrators; risk and release owners; evaluation and approval; material limitations and unresolved risk decisions; incident and escalation channels; and authority to update, restrict, roll back, suspend, or terminate. Each covered control holder shall maintain the corresponding portion and provide current provenance and a response contact. The oper-

ator shall obtain a contractual right to retrieve the defined supplier fields, require preservation and response, and carry those duties through subcontracting, acquisition, and service termination. These operator duties are nondelegable solely as to compliance with this Act's record, retrieval, and access requirements; they create no underlying nondelegable duty of care, vicarious liability, or primary-recourse rule. The designation supplies the retention period and material-change rule.

Section 3. Stage One Notice; No Condition Precedent. An affected person may deliver to the visible operator's designated agent a declaration under penalty of perjury (such declaration, a "verified notice") identifying: (a) an adverse event affecting an interest protected by the law named in the designation; (b) the covered deployment or visible operator through which the event occurred; (c) facts reasonably connecting the requested identity and event fields to that occurrence; (d) the event, transaction, account, application, decision, or period with as much specificity as reasonably available; (e) the closed fields sought; and (f) a good-faith intended use of the answer to evaluate, contest, appeal, or seek relief for the event. Stage One does not require a fact held exclusively in the deployment record. Counsel, if any, shall certify to the operator proper purpose and reasonable inquiry. Delivery invokes the first-answer duty but is not service of process for an enforcement action. Invocation or exhaustion of Stage One is not a condition precedent to commencing or maintaining any action other than an action to enforce the duties created by this Act. Failure to invoke Stage One, or an incomplete first answer, creates no pleading requirement, ground for dismissal, stay, or defense as to any other claim.

Section 4. First Answer and Preservation. Within thirty days after delivery, the operator shall provide an event receipt and custodian map in the form the designation specifies. The receipt identifies the application and model versions active for the event; any requested output, score, decision, notice, warning, transmission, use, or intervention; and whether a named function did not run. The map identifies each entity that supplied, configured, integrated, or operated a material component; the custodian and legal controller of each field; and each entity with update, restriction, rollback, suspension, or termination authority. The operator shall preserve its risk-specific record, identify known deletion or unavailability, activate its contractual retrieval and preservation rights, and promptly forward the notice and common event identifier to each identified covered control holder. Each such holder shall preserve and acknowledge its assigned lane and may respond within that lane. For any other supplier, the operator shall satisfy the retrieval obligation through Section 2's contract and the deployment record it requires. Operator notice alone creates neither statutory coverage, choice of law, service, personal jurisdiction, nor consent. One extension of fifteen days may be obtained for a stated technical, privacy, or security need. Section 7's protections apply to every disclosure under this Section.

Section 5. Material Control. A covered control holder remains for Stage Two only upon a prima facie showing that, at the relevant time: (a) its function was specifically connected to the asserted risk; (b) it possessed practical authority through configuration, constraint, evaluation, monitoring, update, restriction, rollback, suspension, termination, or a legally enforceable equivalent; and (c) the Stage One record supports that the function formed part of the event path or governed a safeguard, and the requested information bears more than a de minimis relation to an element, defense, or remedy. This Section requires no showing that exercising the authority would have prevented the injury, changed the decision, or satisfied causation. Investment, general cloud service, publication, research, brand association, provenance, or theoretical technical capacity alone is insufficient. Any other supplier is reached only through Section 2's contract, ordinary subpoena authority, or another independent source of law.

Section 6. Objection, Burdens, and Enforcement. The operator or a responding covered control holder may object by field and shall state facts supporting noncoverage, nonoperation, burden, privilege, privacy, security, or documented unavailability. A proprietary label or referral to an unnamed supplier is insufficient. A timely, specific objection stays disclosure of only the contested field pending prompt neutral review; every uncontested field remains due. An affected person may seek expedited enforcement in a court of competent jurisdiction or another lawful forum. The requester bears the burden on coverage, delivery, and the Stage One occurrence threshold. The objecting operator or covered control holder bears the burden on a field-specific objection based on facts within its control. After the first answer, the requester identifies a prima facie control lane; a covered control holder seeking termination identifies the Stage One record defeating risk specificity, practical authority, or information materiality. An ambiguity caused by that holder's violation of Section 2 is resolved against it only for access and termination and creates no merits inference.

Section 7. Stage Two, Federal-Court Boundary, and Protection. Further nonprivileged production may be obtained by agreement or ordered only in a pending action, arbitration, or administrative review with an independent basis to exercise authority over the producing person and record. Stage Two creates no freestanding bill of discovery. Production requires that the producing holder remain under Section 5 and that the requested production be necessary and proportionate. It shall be limited by time, version, affected population, feature, and asserted risk. Source code, weights, sensitive data, raw content, expressive deliberation, and security controls require written findings that less intrusive evidence cannot reasonably resolve a material issue.

The protections in this Section apply to every disclosure under Sections 4 and 7. The owner of contested protected material and any materially affected third party shall receive notice and an opportunity for prompt neutral review before disclosure. The tribunal shall protect privilege, privacy, trade secrets, research, association, expression, and security through minimization, redaction, pseudonymization, limited access, secure expert review, in camera review, or another lawful safeguard.

In an action pending in a court of the United States, the Federal Rules of Civil Procedure govern all Stage Two production and protection. After an action concerning the adverse event is pending in such a court, and except for relief on a first-answer violation completed before that action was commenced, no party may invoke Stage One to obtain fields from another party in that action. As to fields first sought from another party after the action is pending, the first-answer duty is satisfied through, and limited by, the Federal Rules of Civil Procedure. This Act creates no entitlement to production from a party beyond the scope of Rule 26(b)(1), advances no discovery before Rule 26(d), and enlarges no production or subpoena authority under Rules 34 or 45. The duties to create, retain, and preserve the record under Sections 2 and 4 apply without regard to whether an action is pending.

Section 8. Merits Firewall and Termination. Coverage, notice, compliance, noncompliance, and participation create no inference or presumption of duty, breach, defect, discriminatory operation, agency, causation, damages, or joint liability solely by virtue of this Act. Governing law supplies every element and defense and determines the independent relevance, if any, of operational conduct. A covered control holder that completes its applicable Section 4 duties and defeats a Section 5 requirement terminates its front-door role. An entity not otherwise subject to an independently sufficient claim resumes nonparty status. A valid subpoena, regulatory authority, or another source of law may require continued participation on its own terms.

Section 9. Remedies and Limitations. The lawful forum may issue an expedited compliance order and award reasonable actual expenses caused by an incomplete, late, or evasive answer. The administering authority may order creation or correction of the minimum record, compliance monitoring, and a civil penalty calibrated to duration, affected persons, record scope, and culpability up to the ceiling fixed in the sectoral designation. Knowing falsification, concealment, or repeated violation permits recovery of enforcement expenses and an enhanced penalty up to twice that ceiling. Bare nonperformance creates no private statutory damages; Section 8 governs its merits effect, and this Act creates no damages for the underlying adverse event. Measures for lost electronically stored information in federal litigation remain governed by Federal Rule of Civil Procedure 37(e). Only a claim created or expressly governed by this Act is tolled from delivery of a compliant request until sixty days after compliance or final denial.

Section 10. Nonwaiver, Forum, Standing, and Federal Procedure. The duties to create, retain, and provide the minimum record are nonwaivable as to affected persons, arise from a covered deployment, and exist whether a dispute is litigated, arbitrated, or never filed. Except as an element of a claim to enforce the first-answer duty itself, invocation or exhaustion of Stage One is not a condition precedent to commencing or maintaining any civil action or arbitration. Failure to invoke Stage One, or an incomplete first answer, creates no pleading requirement, ground for dismissal, stay, or defense as to any other claim.

A valid arbitration agreement may select the private enforcement forum under the Federal Arbitration Act; the first-answer clock continues independently, and completion of Stage One is not a condition precedent to commencing or continuing arbitration except as an element of a claim to enforce the first-answer duty itself. An agreement to which the administering authority is not a party does not restrict public enforcement brought in that authority's own name.

A claim to enforce a first-answer violation completed before a federal action was commenced seeks the compliance relief specified in Section 9. In federal court, the Federal Rules govern commencement, pleading, service, provisional relief, adjudication, and judgment. Section 7 governs any fields first sought from another party after a federal action concerning the adverse event is pending.

Nothing in this Act creates Article III standing, personal jurisdiction, or subject-matter jurisdiction; overrides immunity or privilege; binds a nonsignatory to arbitration; or alters federal rules

> governing pleading, service, joinder, discovery, amendment, protective orders, injunctions, and sanctions. Courts and arbitrators administer the duties created here; they do not derive them from ordinary discovery authority.
>
> **Section 11. Territorial Reach, Federal Supremacy, and Severability.** An upstream enterprise has a direct duty only when it purposefully supplied, configured, operated, or continuously supported the identified deployment for covered use in this State, or another lawful basis for legislative authority exists, and application of this State's law satisfies territorial and choice-of-law rules. Coercive relief additionally requires valid service and an independent basis for personal jurisdiction. Appointment of the operator's response agent authorizes delivery under Section 3 only and creates no consent to general jurisdiction. This Act imposes no requirement to the extent federal law preempts it, requires no disclosure prohibited by federal privacy, security, communications, or confidentiality law, creates no claim solely to enforce a federal duty reserved to the United States, and does not regulate the United States absent congressional authorization and an applicable waiver. A tribunal shall sever a preempted actor, field, remedy, or application when the remaining designation can operate consistently with the legislature's stated purpose.

The regulated acts are operating without the required record and refusing the resulting access right, not unsafe operation in the abstract. The model text makes that allocation enforceable while leaving the merits where governing law placed them.

G. The Front Door Ends Where Federal Discovery Begins

The front door's most durable contribution precedes any access dispute. No Federal Rule tells an enterprise what version, approval, evaluation, escalation, intervention, event, or retrieval record it must create while operating a covered deployment. Rule 34 permits requests for designated existing materials within a party's possession, custody, or control; it does not require the enterprise to create the record in the first place. Thus, even if a federal court declined to enforce a first-answer demand against another party after litigation began, the ex ante duty would still have performed the Article's indispensable work. The deployment would remain identifiable, its event and control record would exist, and ordinary federal discovery could reach that record subject to the Rules' own limits. *Erie* therefore governs the access channel in a bounded set of federal cases. It does not determine whether a covered deployment must remain observable.

Berk v. Choy makes the correct axis explicit: scope, not characterization. The Court reversed the dismissal of a diversity medical-negligence action that lacked the affidavit of merit required by Delaware law. An eight-Justice majority held that Rule 8 answered whether the action could be dismissed because the plaintiff had not supplied merits evidence at the outset; Justice Jackson concurred only in the judgment, locating the conflicts in Rules 3 and 12 instead. The opinions disagreed over the precise Federal Rule, but each treated the "question in dispute" as decisive. Once a valid Federal Rule answers that question, contrary state law gives way even if substantive under *Erie*; at the Rules Enabling Act step, the displaced law's substantive purpose makes no difference. Stage One's substantive character is therefore insufficient by itself. Its stronger defense is noncollision: a fixed, transaction-linked operating and access duty asks a question the Federal Rules do not answer.[37]

The distinction is structural. Delaware required a plaintiff to submit evidence to a court to commence or maintain a lawsuit. The front door adds nothing to a complaint, changes no dismissal standard, and creates no prerequisite to another claim. It asks what an operator must record during covered operation and what event receipt it owes after a compliant request concerning a covered event, whether the recipient later sues, arbitrates, appeals, seeks correction, or brings no proceeding. Model Act §§ 3 and 10 make that line operative.

The discovery Rules answer later questions. Rules 26, 34, and 45 govern the timing, scope, and targets of party and nonparty discovery; Rule 37(e) governs covered loss of electronically stored information. Those Rules presuppose an action, a discovery relation, and an identifiable target or record. Rule 27, the closest pre-action candidate, authorizes perpetuation of identified testimony rather than investigation to determine whether a claim exists. None tells an enterprise what record to create during operation or what transaction-linked receipt it owes a person who may never litigate.[38]

Existing access laws illustrate the institutional form without resolving the *Erie* question. The FCRA requires disclosure of a bounded consumer file; Florida requires pre-suit insurance information; California requires access to personnel records but suspends that route during re-

[37] See *Berk v. Choy*, 607 U.S. 187, 191–200 (2026) (reversing dismissal of the diversity action and holding that Federal Rule of Civil Procedure 8 displaced Del. Code tit. 18, § 6853); *id.* at 200–12 (Jackson, J., concurring in the judgment) (locating the conflicts in Rules 3 and 12 rather than Rule 8); *Hanna v. Plumer*, 380 U.S. 460, 469–74 (1965); *Shady Grove Orthopedic Associates, P.A. v. Allstate Insurance Co.*, 559 U.S. 393, 398–410 (2010); *Sibbach v. Wilson & Co.*, 312 U.S. 1, 14–16 (1941).

[38] See Fed. R. Civ. P. 26(b)(1), 26(d)(1), 27(a), 34(a), 37(e), 45(a)(2); *Workman v. United States Postal Service*, 127 F.4th 237, 240–45 (10th Cir. 2025).

lated litigation. In *American Bank v. City of Menasha*, the Seventh Circuit likewise held that a public-records request did not become discovery solely because the requester sought material for litigation, while warning that substance controls if a State disguises discovery as inspection. The front door follows that warning only if its fields are fixed before the dispute, its duty operates outside litigation, and claim-specific relevance and proportionality remain outside Stage One. The state pre-suit proceedings surveyed in Section I.C demonstrate administrability, but as court-authorized discovery they do not supply this proposal's federal-law form.[39]

Berk itself supplies the affirmative model. In distinguishing *Cohen v. Beneficial Industrial Loan Corp.*, the Court explained that there was no conflict because state law created a liability while Rule 23 governed disclosure to the court and notice to interested parties. The front door belongs on that side of the line when drafted as the model text provides. Coverage, a compliant notice, delivery, and nonperformance complete a state-law violation. An enforcement action seeks the prescribed event receipt and custodian map as relief on that claim; it does not ask the court to compel evidence for proving a different claim. Rule 8 governs the enforcement complaint, Rule 12 governs dismissal, Rule 65 and ordinary remedial rules govern interim relief, and the remaining Federal Rules govern adjudication. State law supplies the duty and remedy; federal law supplies the litigation machinery.[40]

Calling production "relief" is not sufficient by itself. Two objective features separate the front door from a free-standing bill of discovery. First, the designation fixes the Stage One universe before the event. Two affected persons presenting different liability theories receive the same identity, version, event, custodian, and control fields for the same kind of event, although either may request fewer fields. Second, the duty performs the same work when no merits suit follows. A field whose scope changes with a pleaded element, defense, relevance argument, or proportionality showing is not a Stage One field; it belongs to Stage Two or ordinary discovery. Fixed content and litigation-independent operation are therefore elements of the rule's boundary, not labels assigned during enforcement.

The Model Act withdraws where a Federal Rule answers the question. Once an action concerning the event is pending in federal court,

[39] See Fair Credit Reporting Act, 15 U.S.C. § 1681g(a)(1)–(3) (2024); Fla. Stat. § 627.4137(1) (2026); Cal. Lab. Code § 1198.5(b)–(c), (n)–(o) (2026); *American Bank v. City of Menasha*, 627 F.3d 261, 265–67 (7th Cir. 2010).

[40] See *Berk*, 607 U.S. at 195–96 (distinguishing *Cohen*); *Cohen v. Beneficial Industrial Loan Corp.*, 337 U.S. 541, 555–56 (1949).

Stage One cannot become an additional route around Rules 26(d), 26(b)(1), or 34; fields first sought from another party proceed under the Rules. A completed prefiling refusal remains an accrued access claim if jurisdiction and Article III permit. Thus an applicant who requested and was denied the event receipt before filing may seek that statutory relief, while one who files first uses federal discovery against the record that Model Act § 2 already required. Model Act §§ 7 and 10 state the boundary rather than leaving it to a savings clause.

The retrieval architecture likewise complements Rule 34. Model Act § 2 creates a contractual right to retrieve supplier fields but does not declare that right to be Rule 34 control. A legal-right circuit may treat the clause as supplying a right to obtain documents; a practical-ability circuit may consider the clause, response mechanism, and course of dealing. The federal court independently decides possession, custody, or control. State contract law creates the entitlement; Rule 34 determines its procedural consequence.[41]

The forum boundary follows. The principal adopting institution is a state legislature, and the ordinary enforcement forum is the one the sectoral designation supplies under state law. In compliant cases no tribunal is involved: the operator delivers the receipt, and any later federal merits action proceeds under ordinary discovery. A federal court encounters the state access claim only through diversity, supplemental, or another independent jurisdictional basis; Congress can adopt the same architecture for a federal cause of action, in which event *Erie* does not arise. The state statute creates neither subject-matter jurisdiction nor personal jurisdiction. Article III independently requires a concrete injury. A federal plaintiff should allege that denial impaired a specified use—identification, correction, contest, appeal, or pursuit of relief—or caused reasonable actual expense. State courts apply their own standing law.[42]

Record preservation and limitations follow the same allocation. State law may prescribe baseline creation and retention as conditions of covered operation and may extend the defined retention period after a qualifying notice. If electronically stored information is lost in anticipation or conduct of federal litigation, Rule 37(e) supplies the federal litigation

[41] Compare *In re Citric Acid Litigation*, 191 F.3d 1090, 1107–08 (9th Cir. 1999) (applying a legal-right-to-obtain test), with *Sergeeva v. Tripleton International Ltd.*, 834 F.3d 1194, 1200–02 (11th Cir. 2016) (affirming, in a proceeding under 28 U.S.C. § 1782, a control finding supported by the affiliated entities' ordinary course of dealing and access to responsive information).

[42] See 28 U.S.C. §§ 1331, 1332, 1367 (2024); *TransUnion LLC v. Ramirez*, 594 U.S. 413, 425–31, 440–42 (2021); *Spokeo, Inc. v. Robins*, 578 U.S. 330, 339–43 (2016); *Havens Realty Corp. v. Coleman*, 455 U.S. 363, 373–74 (1982); *Public Citizen v. United States Department of Justice*, 491 U.S. 440, 449–50 (1989); *Federal Election Commission v. Akins*, 524 U.S. 11, 21–25 (1998); *ASARCO Inc. v. Kadish*, 490 U.S. 605, 617–18 (1989).

measures; the state statute prescribes no competing adverse inference or case-management sanction. A State may toll a limitations period for a claim the Act creates or expressly governs while the operator answers. *Walker v. Armco Steel Corp.* remains the relevant scope precedent: Rule 3 did not answer when state limitations law was satisfied, so the state rule applied. Rule 15 continues to govern amendment and relation back in a later federal action.[43]

This allocation does not depend on how lower courts extend *Berk* to other state gatekeeping devices or on a federal court accepting parallel access against another party after litigation begins. The rule is narrower: a State may require a covered deployment to remain observable and an event receipt to issue outside federal party discovery; once that discovery governs the same request, the Federal Rules supply the exclusive channel. The front door creates the record and first object. It ends where federal discovery begins.

III. The Rule in Operation

No single fact pattern displays both front-door functions equally well. *Garcia* is the deployment-record application: the operator is visible, but the deployment record is not. *Mobley v. Workday, Inc.* is the divided-stack application: identity, possession, legal control, and technical control occupy different entities. The cited orders are used only for the procedural posture and record-allocation problems they document, not to predict any later merits result.

A. An Integrated Deployment: *Garcia*

Garcia begins where the rule is easiest to serve. Character Technologies operated the visible consumer application. The complaint identified the company, its founders, and Google entities and described months of interaction through a known service. The difficult questions concerned the record behind the interface: which versions and policies governed, how features were allocated among the application and its components, what relational and self-harm risks were evaluated, what warnings and interventions appeared, and which actors could change access or operation.

The published decision supplies a careful procedural anchor. Taking well-pleaded allegations as true for Rule 12 purposes, the district court treated Character.AI as plausibly alleged to be a product and allowed central product and negligence theories to proceed. It declined on that record to treat the generated sequence as protected speech where defen-

[43] See *Walker v. Armco Steel Corp.*, 446 U.S. 740, 750–52 (1980); *Berk*, 607 U.S. at 205 (Jackson, J., concurring in the judgment); Fed. R. Civ. P. 15(c), 37(e).

dants had not identified the relevant expressive choice or speaker. The order made no finding of defect, causation, or liability, and the later settlement supplied no merits determination.[44]

i. Trigger and First Answer

The alleged event and pleaded facts illustrate a notice that, if verified, would satisfy the threshold for a relational deployment that a sectoral designation could cover. The complaint identified legally cognizable injuries, including wrongful death, and linked them to sustained interaction with the service. It challenged concrete features: access by a minor, anthropomorphic presentation, continuity and memory, relational engagement, warnings, and asserted omissions in safety intervention. The requested records would bear on recognized negligence, products, warning, and consumer theories rather than a freestanding claim to inspect a chatbot.

Character Technologies would receive the front-door notice as visible operator. Stage One would identify the application and model versions active for Sewell's account; whether the requested covered functions ran; warnings, detections, blocks, escalations, and interventions recorded for the event; the entities that supplied or configured relevant components and the custodians and legal controllers of the listed records; and the roles with update, restriction, rollback, suspension, or termination authority.

The complaint's allegations concerning the founders and Google demonstrate why identification should remain functional. It alleged personal direction by the founders and technical, financial, and organizational contributions by Google.[45] Position, investment, former employment, or infrastructure supply alone would not establish material control. The first answer would identify whether any enterprise retained a risk-specific right over the model, application configuration, evaluation, release condition, update, or stopping decision. That record tests the control lane without presuming it from corporate association.

ii. Relational Features Define the Risk-Specific Record

The production request can be narrower because relational research identifies provider-governed variables. Studies of companion discontinuity and user reports connect continuity, relationship framing, dependence,

[44] See *Garcia*, 785 F. Supp. 3d at 1165–69, 1174–84; Garcia Dismissal, ECF No. 244, at 1; Garcia Charging-Lien Order, ECF No. 273, at 1.

[45] See First Amended Complaint ¶¶ 24–25, 50–72, *Garcia v. Character Techs., Inc.*, No. 6:24-cv-01903-ACC-EJK (M.D. Fla. Nov. 9, 2024), ECF No. 11; *Garcia*, 785 F. Supp. 3d at 1165–66, 1183–84.

and recurring interaction patterns to experienced harms.[46] A preregistered four-week study likewise found increased separation distress and dependency-risk profiles under specified relationship-seeking and repeated-exposure conditions.[47]

The legal contribution lies in the variables rather than a universal effect estimate. Relationship seeking, continuity, memory, dose, age, crisis signal, and provider intervention are features an operator can evaluate and govern. They specify the record relevant to intended use, notice, alternative design, warning, monitoring, and causal sequence. Table 2 maps each feature to the risk-specific record it requires.

The table also disciplines marketing evidence. Calling a service a companion or therapist does not make the model a legal person and does not establish defect. It can identify the use the enterprise cultivated, the exposure it expected, and the evaluations responsive to that design. A generic "not human" notice enters the same record with its timing, presentation, audience, and relation to the service's features.

iii. Stage Two and the Merits

After Stage One established the versions, roles, and incident sequence, Stage Two could reach age-access and relational-risk evaluations; self-harm policies and configuration history; pre-event complaints and incident patterns; release and change approvals; escalation and response; and available account restrictions, interruptions, or rollbacks. Time, version, population, feature, and risk would bound the request. Unrelated conversations and user data remain excluded or minimized, and source code or weights require a showing that documentation, event logs, and representative testing cannot resolve a material issue.

The same record could favor the defense. The papers disputed character selection, role play, user-edited messages, platform rules, content blocking, and an in-chat fiction notice.[48] Versioned configuration and event fields could show which features came from a third-party creator,

[46] See Julian De Freitas et al., Lessons from an App Update at Replika AI: Identity Discontinuity in Human–AI Relationships, at 11–25 (Harv. Bus. Sch. Working Paper No. 25-018, 2025), `https://www.hbs.edu/ris/Publication%20Files/25-018_d256c104-e5ba-4911-b72c-874c5492166e.pdf`; Jaime Banks, *Deletion, Departure, Death: Experiences of AI Companion Loss*, 41 J. SOC. & PERS. RELATIONSHIPS 3547, 3547–49, 3555–69 (2024); Linnea Laestadius et al., *Too Human and Not Human Enough: A Grounded Theory Analysis of Mental Health Harms from Emotional Dependence on the Social Chatbot Replika*, 26 NEW MEDIA & SOC'Y 5923, 5926–38 (2024); Renwen Zhang et al., *The Dark Side of AI Companionship: A Taxonomy of Harmful Algorithmic Behaviors in Human–AI Relationships*, in CHI '25 PROC. 1, 5–19, 22–23 (2025).

[47] See Hannah Rose Kirk et al., Neural Steering Vectors Reveal Dose and Exposure-Dependent Impacts of Human–AI Relationships, at 2–3, 5–8, 10–11, arXiv:2512.01991v2 (Feb. 18, 2026). The preprint does not establish commercial-population incidence, historical foreseeability, clinical injury, or tort causation in *Garcia*.

[48] See *Garcia*, 785 F. Supp. 3d at 1167–69.

Table 2: Relational Features as Control-Record Factors

Deployment feature	Risk-specific record
Persistent persona, memory, proactive messages, affection, or exclusivity	Intended relational use; exposure and continuity testing; memory policy; age-specific evaluation; monitored dependence signals.
Claims of companionship, therapy, expertise, autonomy, or capacity to act	Target audience; product requirements; substantiation; warning design; expected reliance; escalation responsibility.
Engagement objectives tied to relational behavior	Metric ownership; optimization target; risk constraint; release decision; evaluation of lower-exposure alternatives.
Self-harm or crisis classification	Detection version; threshold; validated population; false-positive and false-negative analysis; response policy; incident-specific trigger and intervention.
Access by minors	Age rule and enforcement; minor-specific evaluation; parental or guardian features where applicable; restriction and termination authority.
Discontinuity, account intervention, or service shutdown	Continuity notice; export or transition function; crisis safeguard; rollback and account-restriction decision.

which controls fired, which warnings appeared, and whether an alternative would have changed the sequence. Governing law would then address classification, foreseeability, feasibility, and causation; later research or safety measures could identify questions without proving historical knowledge, admissibility, or earlier feasibility.[49]

B. A Divided Deployment: The Vendor Hosts the Data; the Employer Controls It

Mobley presents the complementary architecture. Applicants encounter employer portals while a platform vendor supplies processing and recommendation features. Employers can own or legally control applicant data and decide how a feature affects hiring; the vendor can host the data and control products, versions, defaults, and some evaluation. The cited orders expose four recurring record-allocation problems that the front door must solve without predicting discrimination: feature identity, divided legal control, privilege, and safe exit.

i. Feature Identity and the Event Path

The first problem is not whether "AI" was generally available. It is which function processed a particular application and what reached the employer. At the pleading stage, the district court treated allegations that employer customers delegated traditional hiring functions to Workday as sufficient to proceed on a statutory agency theory. The same order required a different theory to connect a particular employer's conduct, Workday's knowledge, and the assistance it allegedly supplied.[50] Nominal identity was visible. The operative chain among employer, feature, output, use, and knowledge was not.

Later notice-stage proceedings illustrate the fields. Candidate Skills Match, when enabled by a customer, parsed a job description and applicant materials, extracted skills, and assigned a categorical match. Workday described customers as able to enable, disable, use, or ignore features. The court reserved what outputs meant and how customers used them for later adjudication while permitting targeted discovery to identify potential collective members.[51]

For a designated employment-screening deployment, the employer receiving the application is the visible operator. Stage One asks the applicant for the position, application date, adverse disposition, covered por-

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[49] See Fed. R. Evid. 407; *Garcia*, 785 F. Supp. 3d at 1169.

[50] See *Mobley*, 740 F. Supp. 3d at 806–08, 815–16. The order granted in part and denied in part a motion to dismiss; it made no finding of discriminatory operation or ultimate agency.

[51] See Order Granting Preliminary Collective Certification at 2, 4, 10–13, 18–20, *Mobley v. Workday, Inc.*, No. 3:23-cv-00770-RFL (N.D. Cal. May 16, 2025), ECF No. 128. Preliminary certification authorized notice and preserved Workday's right to seek decertification; it was not a merits or final class ruling.

tal, and the best available event key—a requisition number, application ID, tenant URL, or timestamp. It does not require the applicant to name the vendor feature or allege that a hidden score actually participated. The first answer resolves that question.

The employer's event receipt identifies products active for the application; versions and enabled features; fields, criteria, and preferences the employer supplied; any score, sort, rank, screen, threshold, or recommendation received; the downstream action; and whether no automated function processed the event. The custodian map identifies the supplier, account roles, record locations, legal controllers, and contractual retrieval, update, and suspension rights. A linked supplier answer resolves the same identifier within its lane: tenant and requisition, product and version, whether a function ran, whether it generated and transmitted an output, which settings came from the customer, and which entities held the listed records and authority roles.

Together, those answers separate five propositions: a feature was available; the customer enabled it; it processed the event; it generated or transmitted an output; and the customer used that output. None follows from the preceding proposition, and establishing the sequence does not establish that the output caused an unlawful decision.

ii. Physical Hosting Versus Legal Control

The second problem is custody. A 2026 discovery order described customer applicant data as stored on Workday servers while the agreement placed ownership of customer content with the customer and allowed the customer to seek an injunction against disclosure. Applicants had subpoenaed thirty-five customers, and some customers pointed back to Workday as the efficient source. On that record, the court held that physical storage did not establish Workday's legal right to obtain and produce the customer data on demand under Rule 34.[52]

The front door does not reverse that holding. It changes deployment design before the dispute. The employer keeps the control sheet, position definition, customer settings, application, downstream review, disposition, notice, and event identifier. The supplier keeps version lineage, product documentation, defaults, run and transmission logs, and the operational evaluation record assigned to its lane. The predeployment agreement gives the employer a right to retrieve defined supplier fields and authorizes a coordinated hold for customer-controlled content. Both receive the same deployment and event identifiers, preventing

[52] See Discovery Order at 1–3, 8–10, *Mobley v. Workday, Inc.*, No. 3:23-cv-00770-RFL (N.D. Cal. May 29, 2026), ECF No. 340. The holding concerns the agreement and record before the court; it does not classify every hosted Workday record.

a platform label and customer label from preserving incompatible slices.

That architecture distinguishes technical hosting from statutory responsibility. A covered supplier subject to the Act answers its assigned lane. Another supplier responds through the employer's retrieval right. The applicant no longer has to choose between the host and legal controller before seeing the contract and custodian map; Stage One identifies both, and ordinary Rule 34 or Rule 45 analysis governs any later production beyond the statutory minimum.

iii. Privilege Versus the Operational Minimum Record

The third problem is the line between legal advice and operation. The same discovery order held particular Candidate Skills Match bias-testing materials privileged because counsel selected the data and used the tests to provide legal advice. It separately ordered production of Workday's EEO-1 and federal-contractor compliance materials based on their relevance to knowledge of potential demographic disparities.[53]

The front door preserves that distinction. Attorney communications and qualifying counsel-directed analyses remain protected. The operational minimum—feature identity, version, intended use, validation owner, deployed threshold, event output, complaints, monitoring, and change history—exists because the covered system operated. A privilege log can identify protected analysis while underlying nonprivileged data and ordinary-course records follow existing law.[54] The statute therefore protects privilege without allowing an enterprise to satisfy its deployment-record duty only inside a legal-advice file.

iv. Safe Exit and Coordinated Stage Two

The fourth problem is ending the special proceeding for the wrong lane. A 2025 order concerning HiredScore directed Workday to identify customers that enabled specified features and supplied a concrete exclusion rule: a customer could leave the preliminary collective if Workday could determine that it received no score or rank or did not use the feature to screen candidates.[55] The order managed collective notice rather than applying this Article's statute, but it illustrates a similar operational sequence: identify deployment and output, remove customers with no relevant run or use, and reserve disputed effect.

Stage One generalizes that logic at the event level. The employer may

[53] See Id. at 3, 7–8, 10–11. The order protected identified attorney-directed testing; it did not classify every evaluation or underlying business fact as privileged.

[54] See *Upjohn Co. v. United States,* 449 U.S. 383, 395–96 (1981); Fed. R. Civ. P. 26(b)(3), 26(b)(5)(A).

[55] See Order Concerning HiredScore Features and Customer Identification at 1–2, *Mobley v. Workday, Inc.,* No. 3:23-cv-00770-RFL (N.D. Cal. July 29, 2025), ECF No. 158.

control job criteria, feature activation, decision weight, review, notice, and disposition; the vendor may control design, defaults, validation, updates, and cross-customer monitoring. A customer exits the control lane if no relevant feature ran, no output was produced, or no output reached the decision path. Generic hosting, a post-event acquisition, or transmission of a fixed customer rule can support the same result. A surviving lane then defines Stage Two: aggregate recommendation and validation data for disparate impact; decision inputs and review for disparate treatment; or access, exceptions, and review for accommodation, each bounded by the governing law and procedure.

Where hosting and legal control remain divided, a coordinated protocol replaces serial referrals. The employer authorizes the defined customer fields; the platform runs the query against the correct tenant and version; both verify the schema; direct identifiers are pseudonymized; any lawful protected-characteristic linkage remains segregated; and experts use a secure environment. The protocol identifies which enterprise supplies each field and who attests to completeness. It neither transfers all customer data nor treats physical hosting as universal Rule 34 control.

v. A Stable Public-Employment Analogue

IV. The Record Infrastructure

Houston Federation of Teachers v. Houston Independent School District supplies a completed public-employment analogue. HISD licensed SAS's proprietary teacher-evaluation system, acknowledged that it did not verify the calculations and that teachers could not reproduce them, and had treated requested materials as outside its custody or control.[56] The court denied HISD summary judgment on procedural due process without imposing liability on SAS or ordering public release of source code; it explained that relief could restrict government use of an unverifiable procedure while preserving the trade secret.[57] The front door supplies the prospective complement: define version, input, validation, audit, and challenge records before adoption, then allocate protected access without conflating public duty, vendor secrecy, or ultimate liability.

The front door can disclose only what the deployment has made observable. Ordinary discovery reaches existing matter within a party's possession, custody, or control.[58] It cannot recreate an unrecorded version;

[56] See *Hous. Fed'n of Tchrs., Loc. 2415 v. Hous. Indep. Sch. Dist.*, 251 F. Supp. 3d 1168, 1172–73, 1177–78 (S.D. Tex. 2017).

[57] See Id. at 1179–83, 1185.

[58] See Fed. R. Civ. P. 34(a)(1).

an undocumented release decision, a complaint that reached no assigned owner, or stop authority that no one possessed. The deployment-record duty therefore begins as operating infrastructure and later becomes litigation infrastructure.

This Part defines the control sheet, interface, and separate record clocks; tests feasibility against FAA, FTC, FCRA, and AI Act comparators; and addresses minimization and defense use.

A. The Deployment-Record Control Sheet

Before release, the operator should adopt a written control sheet for each designated deployment, version family, operating context, and risk category. This is not a broad ethics charter. It links technical identifiers to organizational authority and locates the continuing records. The minimum record the sheet carries is a ceiling as much as a floor: it fixes what the record duty compels, and the Act commands nothing beyond it by default; Part IV.E develops the minimization discipline that ceiling implies. Table 3 states the sheet's minimum components and the front-door function each performs.

Table 3: The Deployment-Record Control Sheet

Component	Required allocation	Front-door function
Identity and scope	Application and model versions; purpose; affected population; data; retrieval; tools; credentials; vendors; limits; the designation's material-change threshold.	Defines the deployment and distinguishes versions, component changes, and independent modification.
Risk and release owners	Responsible executive and operational owner for each designated risk; approvers; authority and resources; conditions and review date.	Identifies who receives information and who can commission mitigation or withhold release.

Component	Required allocation	Front-door function
Evaluation and decision record	Protocols, populations, thresholds, results, exceptions, rejected or conditional mitigations, and unresolved risk decisions.	Records the basis for authorization and supplies both knowledge and reasonableness evidence.
Feedback and escalation	Complaint and incident categories; monitoring; escalation channel; recipient; response deadline; decision and corrective action.	Preserves notice, separates report from response, and makes continuing control observable.
Intervention	Actors authorized to restrict, revoke credentials, update, pause, roll back, or terminate; triggers, response times, and tested procedures.	Establishes practical authority and whether a proposed intervention was available at the relevant time.
Provenance and retention	Version lineage; material configuration changes; event identifiers; record custodians; third-party locations; retention and hold procedures.	Enables identification, authentication, preservation, proportional production, and safe exit.
External-rights savings clause	Statement that internal allocation and contract labels do not waive affected-person rights or determine ultimate liability.	Prevents the record from operating as a private exculpatory agreement.

The record should identify roles and offices as well as names. Personnel change; statutory responsibility should survive turnover. A deployment ID links the approved control sheet to the live configuration, and a versioned amendment records material change. The operator can then answer a front-door notice by retrieving a defined record rather than assembling an organizational history after the event.

The material-change threshold is especially important for learning and composite systems. A model update can alter capability while leaving the application version unchanged. A new retrieval source, memory setting, tool credential, ranking threshold, user population, or downstream purpose can change risk without changing model weights. The control sheet applies the material-change rule fixed by the designation: it records which changes required renewed evaluation or approval and which entered a lower-burden change log. A provider and operator can use different internal systems so long as the deployment record links them by version, time, and control lane.

A completed form is only the beginning of proof. The operative questions are whether signals reached people with authority and resources, interventions worked, and material changes triggered review. The form's legal effect is the one Part II.C and Model Act § 8 assign: it creates no merits inference.[59]

B. The Record Has a Standard Interface

The minimum record should operate as a standard interface across the deployment rather than as a mandate to centralize every underlying artifact. The visible operator keeps a closed control sheet: deployment ID; covered purpose and population; application and model versions; material components and suppliers; record custodians; risk and release owners; relevant contract rights; and the event schema used for consequential actions. Each control holder keeps the deeper materials assigned to its lane. Stable identifiers join the control sheet to those materials when a notice or regulator demand arrives.

Three identifiers do most of the work. A *deployment identifier* (deployment ID) distinguishes the covered use from the same model used elsewhere. A *component-version identifier* ties model, application, retrieval, tool, policy, and configuration changes to a time interval. An *event identifier* connects an affected person or consequential decision to the versions and records that governed it; forwarded to covered control holders with the notice under Model Act § 4, it serves as the "common event identifier." The event identifier can be pseudonymous and separately linked to personal data. The system therefore retrieves the relevant slice without exposing unrelated users or requiring a later investigator to infer lineage from timestamps alone.

The interface should use a sectoral data dictionary. "Model version"

[59] See American Law Institute, supra note 33, at § 16(a); RESTATEMENT (THIRD) OF TORTS: PRODUCTS LIABILITY § 4(b) (Am. L. Inst. 1998). Jurisdictions may assign statutory compliance a different effect.

can otherwise mean a marketing name, weight snapshot, API alias, application release, policy bundle, or customer configuration. The designation should define the fields needed to reproduce the legally relevant identity: supplier identifier; immutable or otherwise auditable version reference; activation window; configuration owner; material change; downstream integration; output type; and custodian. An enterprise may keep its own engineering format, but the first answer translates that format into the defined fields and identifies the source system from which each field came.

Integrity requires lineage rather than a self-authenticating compliance certificate. A control sheet should record who created and approved it, the date, later amendments, and the source records supporting the entry. Automated logs can carry hashes, signatures, or append-only controls where appropriate; lower-technology sectors can use ordinary version control and attestation. The legal function is the same: preserve a contestable trail from the live event to the record, not establish conclusively that every listed control operated as designed.

Supplier contracts implement the interface. A visible operator should receive current component and version identifiers, material-change notice, an event-resolution method, a responsive agent, and a right to retrieve the minimum supplier fields on demand. The supplier should receive the operator's deployment identifier, designated purpose, configured population, material customer settings, and preservation contact. Acquisition, subcontracting, model substitution, and service termination should carry successor and export duties for the retained period. These terms keep the record reachable when corporate and technical boundaries change after deployment. Recent work on the AI procurement record reaches a closely related diagnosis: contracts can separate evidence, operational control, economic risk, and public accountability.[60]

The architecture controls cost by keeping routine control-sheet fields separate from retrieval after a defined event. Release and asset-management systems can supply version and supplier identity. Transaction, decision, and incident systems can supply event fields. Deeper evaluation, complaint, and source materials stay with their custodians unless a risk-specific request justifies access. Standardization moves expense toward one-time design and retrieval by identifier, away from repeated forensic reconstruction across every dispute.

Quality assurance can also be bounded. The operator periodically

[60] See Maxwell, supra note 25 (abstract) (treating the procurement file as a governance record). The front door adds a nonwaivable affected-person-facing answer and event-specific enforcement path.

reconciles the live deployment against the control sheet, tests whether an event identifier resolves to the governing versions, confirms that supplier contacts and retrieval rights remain usable, and records exceptions. A regulator can audit samples without obtaining every event. The check asks whether the front door will open when needed: can the operator identify what ran, locate the holder, preserve the slice, and exercise the retrieval path?

C. Identity, Feedback, and Event Records Have Different Clocks

A usable infrastructure contains three linked records.

The *identity record* changes when the deployment changes. It contains the versioned architecture, purpose, population, component suppliers, material configuration, data and tool interfaces, owners, and intervention rights. Its retention period should cover the ordinary period in which a claim involving that deployment can arise, with sector-specific extensions for minors, latent physical injury, or continuing public entitlements.

The *feedback record* accumulates during operation. It contains defined complaints, evaluations, incident classifications, monitoring signals, escalations, decisions, and corrective actions. The designation should specify which events require individual retention, which may be aggregated, and which content should be minimized. A service can record that a crisis detector triggered, which policy and version governed, and what intervention followed without preserving every unrelated intimate conversation indefinitely.

The *event record* freezes a bounded slice when a consequential action or identified incident occurs. In employment it may contain the application, input fields, model and configuration versions, score or recommendation, threshold, downstream human action, notice, and review. In benefits it may contain the assessment data, calculation version, output, governing policy, explanation, appeal, and correction. In a companion deployment it may contain the account and age status, relevant interaction window, governing relational and crisis policies, detections, interventions, warnings, and account restrictions. The event record anchors causal sequence while leaving unrelated people and periods outside production.

These clocks improve privacy and accuracy simultaneously. A blanket command to retain all interactions invites excess. A deployment ID, event schema, and material-change log preserve the facts needed to identify the relevant window. Sectoral lawmakers can then choose periods and minimization rules that fit the interest rather than defaulting to permanent surveillance.

Retention should follow the legal and factual life of the interest. Employment and credit records can track the limitations and administrative-charge periods governing the designated decision, with a defined post-notice extension. A public-benefits event may need to persist through reconsideration, appeal, and the period for judicial review. A clinical deployment may require longer identity and validation lineage where injury can appear later, while still minimizing raw patient content under health-information rules. A relational service involving a minor can preserve crisis and intervention events for a longer protected period without retaining every ordinary conversation. The designation should state the clock, trigger, and lawful deletion rule rather than asking operators to guess from a generic command to keep "AI data."

Different clocks also prevent a change from overwriting history. A current model card cannot establish what governed an earlier event; a current contract cannot prove who controlled retrieval before an acquisition; a revised policy cannot show which warning appeared to an earlier user. The identity record freezes each material interval. The event record points to that interval. The feedback record then shows what the organization learned and changed between intervals. This structure turns evolution from an obstacle into an auditable sequence.

Responsibility for legal holds should also appear in the record. The verified notice described in Part II identifies the event, period, user or decision, and risk. The operator's hold reaches the matching identity, feedback, and event materials and gives identified control holders a common reference. If a record no longer exists, the response identifies the deletion rule, date, custodian, and possible substitute. That information permits a court to distinguish ordinary expiration, negligent noncompliance, and intentional concealment.

D. Existing Regimes Demonstrate Administrability

The proposal borrows implementation forms, not liability conclusions. Four regimes perform distinct comparator roles: organizational record creation, regulator-defined information demands, a private path from visible decisionmaker to upstream file holder, and a supranational access right without a litigation-facing record. The first three comparators are national regimes—an architecture offered as a workaround for the absence of central authority would not prove its own feasibility out of central authority's own instruments—while the fourth prices what a unified instrument adds and what it omits.

i. FAA Safety Management Systems

FAA Part 5 requires covered aviation organizations, on the applicable schedule, to develop and maintain an organization-wide safety management system. The rules assign an accountable executive, require management authority to accept safety risk, specify hazard identification and risk control, require assurance and corrective action, and preserve records. For specified organizations, the system includes confidential employee reporting without fear of reprisal.[61]

Part 5 demonstrates four institutional facts. A safety system can attach to an organization rather than a single component. Named executive and operational authority can coexist. Continuing assessment and correction can be recorded as operating requirements. Retention can be specified without waiting for a lawsuit. AI deployments involve different technologies and protected interests, so the aviation standard does not define reasonable AI care. It demonstrates an administrable precedent for making authority, feedback, intervention, and records a mandatory operating system rather than an aspirational policy.

Aviation reporting supplies a related design lesson. Candid incident and near-miss information has prevention value, while a system that treats every report as a confession encourages silence. The Aviation Safety Reporting Program uses third-party reporting and a qualified, nonpunitive enforcement policy rather than blanket immunity.[62] The narrower lesson here is to distinguish a report from the enterprise's response, while leaving any consequences for falsification, concealment, retaliation, or unauthorized bypass to governing law.

ii. The FTC Companion-Chatbot Orders

The Federal Trade Commission's 2025 section 6(b) study shows that AI-deployment records can be specified with considerably more precision than "produce the algorithm." The Commission ordered named firms to identify organizational roles, predeployment standards and thresholds, deployment approvers, considered and rejected mitigations, post-deployment monitoring, complaints, employee concerns, escalation, and response.[63]

Those specifications map directly onto the front-door functions. Organizational roles identify the control lane. Thresholds and approvers de-

[61] See 14 C.F.R. §§ 5.1–5.17, 5.21–5.25, 5.53–5.57, 5.71–5.75, 5.95–5.97 (2025).

[62] See Federal Aviation Administration, Aviation Safety Reporting Program, Advisory Circular 00-46F, at ¶¶ 2, 6.2, 8.1–8.3, 12.3 (Apr. 2, 2021), `https://www.faa.gov/documentLibrary/media/Advisory_Circular/AC_00-46F.pdf`.

[63] See Federal Trade Commission, Model Order to File a Special Report Regarding AI Companion Chatbots, File No. P254500, at Definitions & Instructions; specs. 3, 11–17 (Sept. 10, 2025), `https://www.ftc.gov/system/files/ftc_gov/pdf/AICompanionChatbot6(b)Order.pdf`. The order gathers information; it is not a finding that a recipient violated law.

fine release authority. Rejected mitigations record a decision without deciding whether it was unreasonable. Monitoring, complaints, employee concerns, escalation, and response create a time-stamped feedback path. A sectoral statute can standardize the same categories prospectively and permit a court to request only the subset connected to a verified risk.

NIST's AI Risk Management Framework can supply terminology for lifecycle roles, executive responsibility, third-party components, testing, feedback, monitoring, and decommissioning.[64] Its voluntary framework remains a vocabulary source. FAA rules and a sector-specific statute supply legal obligation; the FTC orders demonstrate that the responsive information can be operationally defined.

iii. The FCRA's Private-Actor First-Answer Sequence

The Fair Credit Reporting Act supplies the closest domestic analogue for a private-actor gateway. In employment, a user generally must give the consumer a copy of the report and a rights summary before taking an adverse action based on that report.[65] After a covered adverse action, the visible decision user must notify the consumer, identify the consumer reporting agency that supplied the report, state that the agency did not make the decision, and give notice of the right to obtain a free report and dispute its accuracy.[66] The agency, in turn, discloses the bounded consumer file, its sources, and recent recipients; a dispute triggers reinvestigation and a defined route to the furnisher.[67]

That sequence separates merits from access and the visible actor from the upstream information holder. Notice of adverse action does not establish that the report was inaccurate or that either entity violated a merits duty. It routes the affected person to a bounded file and correction process. The analogy concerns duties assigned to private actors, not a unitary private remedy: section 1681m(h)(8) excludes private civil actions for failures under section 1681m and assigns that section to public enforcement, while other FCRA provisions carry their own enforcement allocations.[68] FCRA also applies only within its consumer-report architecture, generally presupposes an existing file, and supplies neither an AI deployment map nor a material-control test. Its structural lesson remains

[64] See National Institute of Standards and Technology, Artificial Intelligence Risk Management Framework (AI RMF 1.0), NIST AI 100-1, at GOVERN 1.7, 2.1, 2.3; MAP 3.5; MEASURE 2.5; MANAGE 4.1 (Jan. 2023), `https://nvlpubs.nist.gov/nistpubs/ai/NIST.AI.100-1.pdf`.

[65] See Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(3)(A) (2024).

[66] See Fair Credit Reporting Act, 15 U.S.C. § 1681m(a)(1), (3)–(4) (2024).

[67] See Fair Credit Reporting Act, 15 U.S.C. §§ 1681g(a)(1)–(3), 1681h(a), 1681j(b), 1681i(a)(1)–(2), (a)(5), 1681s-2(b)(1) (2024).

[68] See Fair Credit Reporting Act, 15 U.S.C. § 1681m(h)(8) (2024); *Perry v. First Nat'l Bank,* 459 F.3d 816, 822–23 (7th Cir. 2006).

powerful: federal law can require the visible decision user to identify an upstream record holder while expressly declining to treat that holder as the decisionmaker. The front door adds the ex ante event and control record for legislatively designated deployments.

iv. A Supranational Comparator: Explanation Without a Litigation-Facing Record

The European Union's unified regime completes the comparator set. The AI Act mandates technical documentation, automatic logging, and record retention for high-risk systems, but those duties run toward regulators and the provider's own file. Article 86 separately gives an affected person a right to a clear and meaningful explanation of the role of the AI system in the decision-making procedure and of the main elements of the decision taken.[69] That is an explanation right. It is not an event receipt, a version identification, a custodian map, or a control allocation; reaching the underlying record still depends on an intermediary's discretion and on procedures that presuppose an identified target. The sequencing makes the point concrete: the explanation right is already in force while the documentation and logging duties on which any meaningful explanation would draw do not yet apply—an access right that arrives before the record duty has nothing to reach. The litigation-facing counterpart—the proposed AI Liability Directive's mechanism for court-ordered disclosure of evidence concerning high-risk systems—was withdrawn before enactment.[70] A unified regime thus supplies a regulator-facing record and an explanation right, but neither an event receipt nor a custodian map.

The same instrument also answers the speed form of the unified-regime objection, in the enacting legislature's own words. The Digital Omnibus deferred the core high-risk obligations well past their original dates—standalone Annex III obligations from August 2, 2026 to December 2, 2027, and Annex I obligations to August 2, 2028—and recital 2 of the amending Regulation states the reason: "the delayed preparation of standards, which provide technical solutions for providers of high-risk

[69] See EU AI Act, Regulation (EU) 2024/1689, art. 86 (excluding Annex III, point 2). Article 86 applies from August 2, 2026, under Article 113's general timetable; Regulation (EU) 2026/1744 of the European Parliament and of the Council of 8 July 2026 (Digital Omnibus on AI), art. 1(40), OJ L, 2026/1744, 24.7.2026, deferred the Chapter III documentation and logging duties for Annex III high-risk systems to December 2, 2027, without touching Article 86.

[70] Proposal for a Directive on adapting non-contractual civil liability rules to artificial intelligence (AI Liability Directive), art. 3, COM (2022) 496 final (Sept. 28, 2022) (court-ordered disclosure and preservation of evidence concerning high-risk AI systems); Commission Work Programme 2025, Annex IV, COM (2025) 45 final (Feb. 11, 2025) (announcing the intended withdrawal); Withdrawal of Commission Proposals, OJ C/2025/5423, 6.10.2025.

AI systems to ensure compliance with their obligations under that Regulation, and the delayed establishment of the governance and the conformity assessment frameworks at national level has resulted in a compliance burden that is heavier than expected."[71] Unified enactment concentrates the decision; it cannot conjure the machinery that makes the decision operable. What slipped was not legislative will but implementation infrastructure—standards that did not yet exist and conformity-assessment bodies not yet established. The shape of that failure is this Article's thesis one level up: the binding constraint was not the absence of a rule but the absence of what the rule presupposed.

Read precisely, the recital distinguishes two kinds of ex ante duty. What proved unaffordable on schedule was an *approval architecture*—obligations discharged through harmonised standards and national conformity assessment, inert until both exist. The front door runs on a *record architecture* and depends on neither: the designation fixes the first answer's fields, in closed form, before the event, so what compliance requires is knowable on the day the statute passes, and there is no notified body, no conformity assessment, no CE marking, and no standards body on whose timetable the duty waits. That is why this Part's comparators are record regimes rather than conformity regimes. A description can be specified by a legislature in one sitting; a measure has to wait for someone to build the instrument.

Together, the comparators answer feasibility at the right level. FAA Part 5 shows prospective organizational records; the FTC orders show that deployment roles and events can be specified; FCRA shows a private-actor routing sequence across a divided decision stack; and the AI Act shows that even a unified supranational regime supplies a regulator-facing record and an explanation right without an event receipt or custodian map. For firms already capable of version control, release management, access logging, vendor management, incident response, and legal retention, the proposal connects those systems for designated deployments. Sectoral designations can provide simplified forms and regulator assistance where appropriate. None of these regimes requires a universal explanation of every internal model state.

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[71] Regulation (EU) 2026/1744, recital 2, OJ L, 2026/1744, 24.7.2026. A recital states the legislature's reasons and aids interpretation; it does not itself bind. The recital attributes the heavier burden to the delayed standards and the delayed national governance and conformity-assessment frameworks, not to the intrinsic cost of the duties, and adds that stakeholder consultations revealed "the need for additional measures to facilitate and provide clarification on implementation and compliance." *Id.*

E. Recordkeeping Risks Require Minimization by Design

Recordkeeping creates a distinct governance risk because recording can reshape the organization being observed. In a 2025 survey of one hundred practitioners, respondents described employee resistance, privacy tension, and uses extending beyond the accountability purpose; forty-seven percent reported records used to monitor or improve staff performance.[72] A mandate framed as "retain everything" could expand employee and user surveillance, suppress candid internal discussion, preserve sensitive data without purpose, and reward litigation defensibility over safety value.

The front door answers that risk in its data structure. The operator's control sheet holds the minimum record rather than raw content by default. Identity, feedback, and event records use different clocks. The event schema records that a threshold fired, which policy governed, and what response followed; it does not require every conversation, keystroke, or unrelated user's data. Employee-performance monitoring is not a minimum field. Raw deliberative conversation, protected health information, and intimate or third-party content remain outside unless a sectoral designation expressly identifies a necessity and lawful protection. Automated capture must be limited to defined events, stated purposes, authorized recipients, and a deletion rule.

The organizational record also separates report from decision. A good-faith risk report records a signal, not an admission by the enterprise; the response record identifies who reviewed it, what information was available, and what action followed. That separation supports candor without making a report's existence automatic breach. Periodic sampling tests whether the record resolves an event without converting continuous worker observation into the measure of compliance. These specifications make minimization part of observability rather than a promise added after collection.

F. The Record Is Also a Defense Asset

The same record can defeat a claim. Version and configuration history may show that a feature was inactive, a downstream actor removed a safeguard, a warning appeared, an intervention fired, or the alleged controller lacked stop authority. Evaluations and incident sequences may establish reasonable preparation, intervening modification, user circumvention, or residual risk. They also keep the inquiry historical: later research may identify a question, and a later mitigation a possible control, without

[72] See Chappidi et al., supra note 25, at 554–56, 559–64.

The front door is an access right with a defined stopping point. It begins only with an adverse event affecting a legislatively specified interest, supplies a closed first answer, and expands only upon a claim-specific showing. It changes no element of the underlying cause of action. Five boundaries make that allocation durable: existing law defines the protected interest; constitutional and confidentiality rules shape disclosure; arbitration, territorial limits, and federal preemption govern the enforcing forum; adoption and deterrence are conceded and priced; and product or speech classification remains for the merits.

proving earlier knowledge, feasibility, or admissibility.[73] The front door prevents either side from asking a court to infer the deployment from the output alone.

A. Existing Legal Interests Define the Gate

The designation selects an existing legal interest that justifies compulsory observability—for example, employment, credit, housing, public benefits, health, education, physical safety, or the welfare of minors. Stage One requires a verified adverse event affecting that interest, not a complete underlying cause of action or a freestanding demand to audit a business. A rejected applicant identifies the job and disposition; a benefits recipient the entitlement and challenged action; a companion-service user the covered interaction. Capability, dissatisfaction, or a preference for another model does not qualify.

The gate preserves the heterogeneity of AI disputes. Some losses have no private remedy; others sound in contract, tort, antidiscrimination, administrative, consumer-protection, or no-liability rules.[74] An out-of-scope interest or field ends the access action, as does a legal bar dispositive of the statutory access claim itself, such as lack of jurisdiction, immunity, or express preemption. The absence of a private merits remedy or a limitations bar on an underlying claim does not necessarily foreclose another use permitted by the Act, such as correction, contest, or appeal. Once the first answer identifies the deployment and custodian, ordinary procedure governs. Routine observability and the first answer remain operator costs; extraordinary protocols follow the designation and forum law, and actors outside the control lane exit.

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[73] See Fed. R. Evid. 407.

[74] See Henderson, supra note 3, at 483, 515–17.

B. Constitutional, Trade-Secret, and Privacy Protections Shape Access

A compelled answer must satisfy the Constitution as well as the model statute. The first answer is transaction linked and principally factual: what system and version ran, which enterprise holds the record, what output or notice occurred, and which role possessed listed authority. It is delivered to the affected person or enforcing tribunal rather than published to the world. Those features distinguish the first answer from compelled ideological speech or a requirement that an enterprise confess legal fault.

The governing First Amendment standard depends on the speaker, content, and regulatory setting. *Zauderer* permits certain compelled disclosures of purely factual and uncontroversial commercial information reasonably related to preventing deception; *NIFLA* rejects an unlimited category of "professional speech" and requires courts to examine burdens and fit.[75] A designation should therefore require operational facts, use neutral field definitions, and avoid compelled normative characterizations such as "unsafe," "biased," or "responsible." If a sector or requested field falls outside the commercial-disclosure line, the otherwise applicable standard of scrutiny governs. The statute's closed fields and nonpublic protections narrow the burden; they do not predetermine the constitutional result.

Trade secrets receive protection, not categorical exclusion. Trade-secret interests can constitute property and turn on reasonable expectations of confidentiality, while litigation law has long used protective orders to limit disclosure of confidential commercial material.[76] Stage One does not require source code, weights, or unrestricted training data. It asks for identity, version, event, custodian, and control fields. Those deeper materials may be considered only at Stage Two upon necessity and proportionality, with redaction, attorneys'-eyes-only access, secure expert review, in camera inspection, and testing protocols available. A withholding party identifies the record, custodian, date, version, and legal basis so that protection does not become invisibility.

Privilege follows the same line developed in Section III.B.iii. Legal advice and attorney work product remain protected. The operator produces underlying nonprivileged facts and ordinary-course business records and logs protected material with sufficient specificity for review. The Act

[75] See *Zauderer v. Off. of Disciplinary Couns. of the Sup. Ct. of Ohio,* 471 U.S. 626, 650–53 (1985); *Nat'l Inst. of Fam. & Life Advocs. v. Becerra,* 585 U.S. 755, 768–79 (2018).

[76] See *Ruckelshaus v. Monsanto Co.,* 467 U.S. 986, 1001–14 (1984); Fed. R. Civ. P. 26(c)(1)(G).

creates no privilege exception and no rule that counsel's involvement automatically removes an operational fact from the minimum record.

Privacy and security limit both creation and production. Part IV's separate clocks and event schema keep unrelated users, raw conversations, worker surveillance, protected health information, credentials, and security details outside the control sheet by default. A request uses the narrowest available event identifier, time window, feature, and population. Pseudonymization, aggregation, secure review, and in camera testing can establish that a control existed without exposing the control itself. A timely field-specific objection pauses only the contested protected field and permits prompt neutral review before disclosure or penalty; uncontested identity and event fields remain due.[77] The boundary is affirmative: define the factual minimum, minimize collection, and protect what remains.

C. Arbitration, Territorial Limits, and Federal Preemption Govern the Forum

Nonwaiver describes the substantive duty, not an exclusive judicial forum. An operator cannot contract away the affected person's right to the minimum record. But a valid arbitration agreement may govern who enforces that right. For a federal statutory right, a contrary congressional command can displace the Federal Arbitration Act's rule of arbitrability. A state enactment cannot single out arbitration agreements for disfavored treatment; the Model Act therefore makes the duty nonwaivable while allowing an otherwise valid agreement to select the private enforcement forum.[78] Questions about whether the parties delegated arbitrability follow federal arbitration doctrine.[79]

The duty still arises before the merits forum needs discovery. A visible operator must maintain the deployment record locally and answer a qualifying request on the statutory timetable; completion is not a condition precedent to commencing or continuing arbitration. If it disputes enforceability or scope, the proper court or arbitrator resolves that dispute under the agreement and the Federal Arbitration Act. An agreement to which the administering agency is not a party does not eliminate public

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[77] Cf. *City of L.A. v. Patel,* 576 U.S. 409, 418–23 (2015) (requiring an opportunity for neutral precompliance review before penalized administrative inspection). A private first-answer request is not the hotel-inspection regime at issue in *Patel*; the case supplies a protective design principle rather than the governing standard.

[78] See *CompuCredit Corp. v. Greenwood,* 565 U.S. 95, 98–104 (2012); *Kindred Nursing Ctrs. L.P. v. Clark,* 581 U.S. 246, 251–58 (2017); *Preston v. Ferrer,* 552 U.S. 346, 359–63 (2008).

[79] See *First Options of Chi., Inc. v. Kaplan,* 514 U.S. 938, 943–47 (1995).

enforcement brought in the agency's own name.[80] This allocation preserves the substantive right, the selected private forum, and independent public enforcement.

The locally maintained deployment record is especially important because arbitral process may not reach an upstream stranger. Federal Arbitration Act section 7 authorizes arbitrators to summon a person to attend and bring documents; the Ninth Circuit reads it not to authorize a stand-alone prehearing document subpoena to a nonparty.[81] The operator's predeployment retrieval right supplies the defined vendor fields without enlarging arbitral subpoena power. A supplier directly bound by the Act or contractually bound to respond answers on that source of authority; another supplier responds only through an independent source of law.

Territorial limits remain equally concrete. The State's authority to apply its substantive law, a tribunal's personal jurisdiction, and valid service are separate predicates. Operator notice supplies none of them. A control holder receives a direct statutory duty only when the enterprise and identified deployment fall within valid territorial and choice-of-law reach; coercive relief additionally requires service and an independent jurisdictional basis.[82] Appointment of the operator's response agent authorizes the statutory delivery route only. It should not silently become consent to all-purpose jurisdiction; an express registration-based consent regime raises the distinct questions illustrated by *Mallory*.[83] The domestic visible operator nevertheless owes the locally maintained control sheet, the event receipt, and the contractual retrieval path. That mandatory local architecture keeps the answer reachable without pretending that state process reaches every global node.

Sectoral designation must also perform a substantive federal-preemption check provision by provision. FCRA expressly preempts specified state requirements concerning dispute procedures, adverse-action duties, and furnisher responsibilities; its present agency interpretation replaced the Bureau's withdrawn 2022 narrow-preemption view, while recognizing that courts remain the final arbiters.[84] ERISA can displace state reporting regimes that intrude on nationally uniform plan administration. Federal

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80 See *Equal Emp't Opportunity Comm'n v. Waffle House, Inc.,* 534 U.S. 279, 288–96 (2002).

81 See Federal Arbitration Act, 9 U.S.C. § 7 (2024); *CVS Health Corp. v. Vividus, LLC,* 878 F.3d 703, 706–09 (9th Cir. 2017).

82 See *Bristol-Myers Squibb*, 582 U.S. at 262–68; *Ford Motor*, 592 U.S. at 358–72.

83 See *Mallory v. Norfolk S. Ry. Co.,* 600 U.S. 122, 134–36 (2023).

84 See Fair Credit Reporting Act, 15 U.S.C. § 1681t(a), (b)(1)(B)–(C), (F) (2024); Fair Credit Reporting Act; Preemption of State Laws, 90 Fed. Reg. 48,710, 48,710–15 (Oct. 28, 2025). The agency document is nonbinding guidance; the statutory text controls.

medical-device law preempts some requirements different from or additional to federal requirements, while the HIPAA rules preserve specified more-stringent state privacy provisions and forbid contrary disclosure commands.[85] Employment law supplies a different savings rule.[86] A designation should identify federal actors and exclusive remedies, whether federal law supplies a floor, ceiling, or parallel-duty path, which actors and fields are excluded, how remedies overlap, and which claims the State may toll. A generic savings clause cannot preserve an application federal law forecloses. Congress can use the same front-door architecture when national uniformity is required.

D. Two Conceded Trades: Designation Dependency and Thin Deterrence

Two limits of the front door are better stated than discovered. First, the machinery is inert until a legislature designates. California's companion-chatbot provisions demonstrate the form without containing the front-door rule, as Part II.A notes; the Article shows that legislatures *can* designate, not that they will designate the fields that bind. The claim here is that the fields are specifiable, administrable, and bounded, not that adoption is assured. Recital 2 of Regulation (EU) 2026/1744 sharpens why this concession must be explicit: stakeholder consultation there reopened an already enacted timetable.[87] Designation dependency is therefore not only a question of whether a legislature acts, but of whether what it enacts survives the implementation period intact—which is an argument for fixing the fields in the designation itself rather than delegating their specification onward. Second, the deterrence is thin. Model Act § 9 provides that bare nonperformance creates no private statutory damages, and Model Act § 8's merits firewall closes the inference routes that might substitute for damages. A duty that cannot be converted into damages is cheap to ignore; the design buys adoptability—no industry can say the Act creates liability—at the price of deterrent force. And where governing law supplies no private remedy at all, as Part V.A recognizes some losses do, nothing catches an enterprise that exits through the strategic incompetence Part II.E describes. Those are the design's real boundaries, and they are priced here rather than left for a hostile reader

[85] See Employee Retirement Income Security Act, 29 U.S.C. § 1144(a) (2024); *Gobeille v. Liberty Mut. Ins. Co.*, 577 U.S. 312, 320–26 (2016); Medical Device Amendments, 21 U.S.C. § 360k(a) (2024); *Riegel v. Medtronic, Inc.*, 552 U.S. 312, 321–30 (2008); Health Insurance Portability and Accountability Act, 42 U.S.C. § 1320d-7(a)(2) (2024); HIPAA Privacy Rule State-Law Preemption, 45 C.F.R. §§ 160.202–.203 (2025).

[86] See Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-7 (2024).

[87] See Regulation (EU) 2026/1744, recital 2, OJ L, 2026/1744, 24.7.2026; Part IV.D discusses the deferral and its causes.

to find.

E. Classification Neutrality Preserves the Merits

The front door does not classify an AI system as a product, service, speaker, agent, or legal person. A companion application can present design questions about access, memory, engagement objectives, crisis response, and warnings while a claim directed at an adopted message presents a distinct First Amendment question. An employment score can participate in a decision without becoming a physical product. Generated text can communicate an operator's decision without making the model a juridical actor.

Garcia illustrates the separation. At Rule 12, the district court treated Character.AI as plausibly alleged to be a product because the challenged features concerned design and commercial distribution. It declined on that record to classify the generated sequence as protected speech where defendants had not identified a relevant expressive choice or speaker.[88] Those rulings were procedural and claim specific. The first answer would identify the deployed system, event, and organizational choices reflected in the bounded record; the pleadings and requested relief identify the challenged conduct and whether the remedy regulates design, transaction, decision process, or expression. Governing law then classifies the claim.

Fragmented and open architectures change the custodian map, not this boundary. An open-weights publisher with no continuing visibility, contractual right, or stopping power can exit after provenance; a modifier that selects the protected use, adds tools, removes safeguards, and controls operation can occupy the lane; and a provider retaining mandatory updates, monitoring, or suspension may retain another. Contract labels and brand association matter only insofar as they describe practical authority. The resulting record lets governing law distinguish reasonable deployment, independent modification, residual risk, and actionable conduct without choosing a winner in advance.

Conclusion

AI litigation can fail before duty, defect, discrimination, causation, immunity, or defense because system identity, version, event path, custodian, and control records remain divided among organizations. Ordinary procedure becomes powerful once the proper target and record holder are known; it cannot create those predicates after the event.

[88] See *Garcia*, 785 F. Supp. 3d at 1174–80.

Model sectoral legislation supplies the missing front door. It requires a minimum deployment record during operation and, after a verified covered event, a fixed answer from the visible operator identifying what ran, what occurred, and who holds the relevant fields and authority. Broader production follows only through a claim-specific material-control lane; actors outside that lane exit the front-door role. *Garcia* shows the rule operating within a visible service, and *Mobley* across divided custody and control. Existing procedure, confidentiality protections, and every merits element and defense remain in place.

Probabilistic output does not foreclose legal responsibility under governing law; it relocates the evidence of control. The deployment front door does not choose who answers in liability. It makes the relevant organizations and records reachable before information asymmetry decides the case.